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Loudoun County Board of Supervisors, Business Meeting, Tuesday, September 16, 2025

Date Tuesday, September 16, 2025
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 6h 3m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8024>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8024>

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[00:05:13] Thank you. Well, good evening, supervisors, good evening, staff, and good evening, Loudon.

[00:05:48] I'd like to call to order the September 16, 2025 Loudon Camden Board Supervisors' business meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecall mode. If you need headsets, we have those available as well.

[00:06:05] Please see the clerk to my left to request one. On this evening, Ms. LaTurner will leave us in invocation, or words of wisdom, and then the Pledge of Allegiance. Thank you, Madam Chair. Heavenly Father, over the last week, our country has experienced some turmoil.

[00:06:24] We had the anniversary of one of the worst incidents, attacks in our country's history, with thousands of victims at the time, and then many more in the years since 9-11. We had continued violence in our cities and even in our schools, and we had an act of political assassination for speech.

[00:06:47] And so in this moment, we ask you for wisdom. We ask you for help. We ask you for humility. We ask for this boardroom to be a place where citizens can come and express their point of view, where we can debate issues and civilly interact with each other.

[00:07:03] And we ask for your prayers for all those victims. and for all those who have been affected by these tragedies. Amen. Other than that, Ms. Letourneau, I don't think I've ever commented on a person's

invocation of prayer, but I really do appreciate you talking about the fact that there were so many people who lost their lives after 9-11

[00:07:42] because we often focus on the almost 3,000 on that day, but there were thousands more, especially first responders who, because of 9-11, lost their lives, And then not to mention people who dealt with the emotional struggles of 9/11. That's very rarely talked about, so I really appreciate you saying that.

[00:07:59] Thank you. Okay, although Mr. – let's just do this. Mr. Turner is on with us. I'm going to read the disclaimer in just a second. He is here. Mr. Sains is, I think, going to be joining us virtually because he doesn't feel well.

[00:08:16] So I'm not sure if he's going to join us virtually or if he's going to come in. If he comes in here and he is sick, I'm sending him home because I am not getting sick. Mr. Kirshner is on his way, and who am I missing?

[00:08:33] Ms. Glass is also on the way. She'll be about an hour late. All right, so pursuant to Virginia Code section 2.2-3708.3 and the board's rules of order, Vice Chair Turner and Supervisor Sayings have requested to participate in this meeting by electronic communication.

[00:08:51] A fiscal quorum of the board of supervisors is present in the boardroom, and the board have made arrangements for the voices of Vice Chair Turner and Supervisor Sainz to be heard by all persons in the boardroom. Vice Chair Turner and Supervisor Sainz made the request within the required time frame, and the county attorney determined that the request meets the qualification to participate remotely.

[00:09:17] The board will record in its minutes that Vice Chair Turner participated remotely from a private location in my place where I was raised, Denver, Colorado, for personal reasons. And Supervisor Sainz participated remotely, if he does, from his private location in Loudoun County due to medical reasons.

[00:09:38] So just to make sure he can hear us, Supervisor Vice Chair Turner, can you hear me? Loud and clear, Madam Chair. Wonderful, wonderful. All right, I am going to read the agenda item at this moment. Item number seven will remain on the agenda because we did not hear back from the attorney for that item, but we can discuss that later on, but it will remain on the agenda and not on the consent agenda and will not be deferred and we will have that discussion when we get to item number seven. So the consent agenda is very long, so if you would all just bear with me. Item one, proclamation to recognize childhood

[00:10:16] Cancer Awareness Month 2025. That's for approval and presentation. Ms. LaTurner will join me down front for that proclamation. Item number two, proclamation to recognize September 17th through 23rd, 2025 is Constitution Week in Loudoun County. That's for approval and presentation.

[00:10:35] Ms. Brickspin will join me down front for that. Item three, proclamation to recognize September 15th through 21st is Diaper Need Awareness Week in Loudoun County. That's for approval only. Item 4, resolution to recognize Ms. Chiara MacArthur, recipient of the United States Environmental Protection Agency's President's Environmental Youth Award.

[00:10:59] Very impressive. That's for approval only. Item 1, countywide authority increase information technology professional services. Item 1B, award authority increase information technology staff augmentation.

[00:11:17] that's countywide. Item 1C, award authority increase telecommunications and internet services, that's countywide. Item 1D, award authority increase heavy duty transit buses, that's countywide. Item 1E, award authority increase in FY 2026 capital improvement program amendment elevator equipment service repair and related services, that is countywide. Item 1F, contract RENEWAL, ARCHITECTURAL SERVICES, AND BUILDING RENOVATIONS, THAT'S COUNTY WIDE. ASSUME

[00:11:52] THESE ARE ALL COUNTY WIDE, UNLESS I SAY DIFFERENT. HOW DOES THAT SOUND? ITEM 1G, CONTRACT RENEWAL, BODY ON CHASSEY, PARATRANSIT, AMERICAN DISABILITY ACTS ACCESSIBILITY BUSES. ITEM 1H, CONTRACT renewal, vehicles, and motorcycles. Item 1I, contract renewal, commercial, off the shelf, also called COTS software. Item 1J, contract renewal, information technology services.

[00:12:24] Item 1K, contract award, off the lot, new and used vehicles through class 7 countywide. Item 1L, contract award, information technology solutions and services. Item 1M, consolidated annual performance and evaluation report for the federal fiscal year 2025 item 1n proposed loan repayment policy amendment of the county's home accessibility and repair program item 2b environmental commissions fiscal year 2025 annual report item 2c planning commission's calendar year

[00:13:03] annual report and bylaws it is their update item 3a appointments and confirmations item 4 Administrative items report of September 16th, 2025. Item five, Loudoun County Transit Title VI services, equity analysis plan, additional commuter bus routes, pilot services from Dale City in Prince William County, Virginia and Frederick County, Maryland.

[00:13:30] That is a countywide item. And item 11, the board member initiative for the Paige-Wallace historical marker proposal. it's a very long consent agenda I will make the motion to approve the consent agenda is there a second on the motion seconded by Supervisor Brixman discussion on the consent agenda Mr. Turner do you have any discussion on the consent agenda no ma'am so I have a couple things one I want to thank the Environmental Commission who do they do an amazing job it is still a fairly new commission but they

[00:14:05] have they hit the ground running and do such a good job and so thank you for your annual report I do encourage everyone to go take a look at it and go read it. I do also want to say that when we talk about the equity analysis for the commuter bus route to pilot services, there's two things, equity analysis, especially for our transit services.

[00:14:31] When we talk about equity and transit, it's often the A in DEIA, it's the accessibility piece. So it's making sure all of our buses are outfitted and for people who may have a disability. And so it's really important that they have the equal right and the equal ability to use our transit system.

[00:14:53] And so I want to thank that staff for doing that. It's been something we've focused on a very long time. And Mr. Letourneau was my colleague who proposed the pilot service from Dale City and Frederick County and I would say when that when he proposed that I was I was pretty skeptical to be quite honest for obvious reasons but the more I've looked into the numbers especially the numbers coming from Frederick Maryland down Route 15 and the more I've talked to other other people both constituents people who work here out of Frederick the Chamber of Commerce and others

[00:15:27] I absolutely have come to believe that this it's a pilot it's a pilot service right now so we'll see what the numbers hold, but I've absolutely come to believe that it's a positive thing that we're doing for the

very reason to try to decrease traffic, especially on Route 15.

[00:15:45] And finally, thank you for supporting the board member initiative on the Paige Wallace historical marker. Paige Wallace, we know there was probably more than three, but we know it was one of the three people who were lynched in the boundaries of Loudoun County.

[00:16:01] the other two people, there's already a marker up, so this would be the last of the three markers we would put up for that purpose, and I really do want to thank everyone who has brought this to us, especially the Freedom Center, and worked on this issue, and our staff who do the archaeological studies and the historical studies, and thank the Heritage Commission for this as well.

[00:16:26] So that is all. And so I made the motion to approve, seconded by Supervisor Brixman. All in favor, please say aye. Aye. Any opposed? That motion will pass 6-3 with our colleagues who are still off the day as far as right now.

[00:16:45] Supervisors, this voice for a cause was going to be Lasagna Love, but they called and they could not make it after all. And so we didn't have time to put anybody else in their place because they called us just yesterday, so we will not have a voice for a cause today, but I will go through my chair's comments of which they are fairly extensive.

[00:17:11] So first, I did the first orientation for Leadership Greater Washington, and if you don't know what Leadership Greater Washington is, I will read what they say about themselves. Leadership Greater Washington is the D.C. area's premier leadership incubator because they see, we see beyond the divisions that hold our region back and we cultivate progress from common ground.

[00:17:34] They bring together visionary influences across professions and geographic areas, uniting them for a shared purpose, taking on the D.C.'s region's toughest issues. I will say the first orientation was interesting.

[00:17:49] I was very pleased to see that, you know, you go to something like this and you're kind expect it's going to be full of other elected officials. It really wasn't. I think there were probably only two other elected officials in the room. There are many more business leaders, community leaders, nonprofit leaders. And so I do trust that the things I learn from business community and nonprofit leaders across the region I can bring back to Loudoun County. So I will continue to update you on what's happening in leadership greater washington mvta both

[00:18:23] all three gpc finance and the full authority meeting was held i won't go through everything but i will say the gpc is the government personnel committee of mvta what we've what we believe right now and it's very early so we don't know for sure yet but we what we believe is that um it might be pretty hard this year to get new money for transportation out of the general assembly only because we are still not sure how hr1 which is also known as the one big beautiful bill but

[00:18:57] hr1 with uncertainty it's going to cause as it relates to medicaid and snap and and school funding and things like that and so what we have decided to do in mvta we always advocate for getting the 38 million that the state still owes us back and we always will advocate for that, but probably this year our biggest thing is just to hope what we got and not lose anything. I do believe that across the board and across multiple disciplines we're just not sure what's going to happen at the state government yet. I don't think they're sure what's going to happen yet either

[00:19:34] because there's so much uncertainty going on. I have been to quite a few regional meetings to discuss how HR1 is impacting the region, especially our job market. The Brookings Institute is in the process of double checking the numbers, and so they have not yet been published, but I did go to that discussion. They will be published on September 25th. They were evaluating the job losses in the region as well as our housing market. The early numbers on the housing market continue to be very surprising and very

[00:20:09] concerning. So I will take a briefing on those numbers when they are made public, and I will bring that back to the board and give you that information at that time. One thing that has been made clear by many studies done by many different organizations is that there is not nearly enough jobs in the private sector to meet the needs of the jobs that were lost by the federal government.

[00:20:36] And for people who had more senior positions in the federal government, there are not nearly enough jobs to meet the salary that people were making working those federal government jobs in the private sector. That is a concern for our area especially because that's kind of been the mantra where the private sector will pick them up.

[00:20:55] All the numbers show that it's not even close to being possible. But again, at the next meeting, I will do a deeper dive into those numbers and bring those numbers back to you. Finally, the other thing we will talk about before the next meeting where I'll get information on is who the demographics of who is out of work at the federal level, what that looks like, who they are, and how many families, not just individuals, but families that will impact.

[00:21:27] And so we'll do all those things at the next meeting. So supervisors, please expect that next meeting, my disclosures may be a bit deeper and a bit longer as I go through all that information at the next meeting. So thank you for that. And since I don't have a voice for a cause, I'm going to go straight to Erin this morning.

[00:21:45] Ms. McClellan, I'm sorry, Ms. McClellan. I'm going to go straight to you this evening for the county administrator comments. Thank you, Madam Chair. I have four comments for this evening. Wow, that's so many more than Mr. Hempstreet now we have. Yes, ma'am. He leaves me with the good ones.

[00:22:01] First off, Loudoun County is reminding operators of short-term rentals in Loudoun that they are required to comply with the county's rules and regulations surrounding short-term rental properties. These include obtaining a zoning permit, registering the rental by July 1 every year, and paying business and transient occupancy taxes.

[00:22:19] More information is online at [loudoun.gov slash short-term rentals](https://loudoun.gov/short-term-rentals). Secondly, Loudoun County has earned national recognition for our Budget Story magazine. The City-County Communications and Marketing Association, known as 3CMA, awarded Loudoun County a Savvy Award for the FY25 Budget Story. The Savvy Awards honor outstanding local government achievements in communications and marketing. The FY25 Budget Story was one of more than 1,100 entries in 37 categories submitted by local governments of all sizes from across the U.S.

[00:22:55] Details about this and other awards earned by Loudoun County are online at loudoun.gov/awards. Next, Loudoun teen and adult artists are invited to enter a piece of literary inspired work in Loudoun's Novel Expressions Art Contest for a chance to win a cash prize. The contest runs through September 30th and is presented by the Loudoun County Public Library, Parks, Recreation, and

Community Services, and the Loudoun Youth Advisory Council. More information on this program is online at loudonlibrary.loudon.gov slash art contest and finally i'd like to introduce you

[00:23:33] to aaron moore our new hr director she's in the audience over here ms moore has more than two decades of leadership experience in human resource management across large federal entities and most recently she served as the chief human capital officer with the u.s department of energy and i i hope you will welcome Erin to the county.

[00:23:56] Well, welcome, Ms. Moore, to the county. I hear that HR is just the easiest job ever. Golly, thank you for doing this job. It's a really tough job. We appreciate you being here. Thank you. It's a great county, best county in the country. You're going to love it. Okay, supervisors, we have no information items tonight.

[00:24:16] Wow. So we're going to dive right into our action items and try to get as many action items done before we take our break. Our dinner break will probably be dinner break plus the two closed sessions we have, and we're going to dive right into those. I do want everyone to remember that if I have people who have signed up to speak on items, I'm going to try to leave those off of the closed -- I mean, of the action items before -- I never do that before people who want to speak, so we know what they want to say before we get to that action item. But what we will first do is go to the Environmental Commission Permanent

[00:24:53] Standing Committee, and that is Mr. Avani and Mr. Brown, you all here. It's item number three, by the way. You by yourself, sir?

[00:25:11] Good evening, Madam Chair. Mr. Avani is online in case I, you know, go too deep into the ocean, but I should be able to handle this one on -- Hold on one second. Yes, ma'am.

[00:25:34] Thank you for helping me, but if you're going to help me, be helpful. Mr. Brown, Yes, ma'am, Madam Chair, thank you very much. This is really an administrative. Go on, Mr. Brown.

[00:25:51] Thank you, ma'am. This is primarily an administrative matter for our standing committees for the Environmental Commission. And every two years, they need to be re-nominated or new nominees presented. And so we are prepared to have any discussion you may have on these individuals. But you'll notice that most of them are reconfirmations.

[00:26:08] And we're requesting the board's approval of that list for confirmation. I do see that. Mr. Turner, if you can see this motion, I would go to you for the motion because of obvious reasons that you and the Environmental Committee, if you can see the motion. But before I go to you for the motion, come to you for the motion, I will ask my colleagues if they have any questions. Mr. Avini, can you hear us?

[00:26:31] I can hear you. Can you hear me? Loud and clear. Okay, thank you. Colleagues, do you have any? I'm sorry, go on, Mr. Avini. I'm sorry. This one is a little strange. The issue has to do with appointing members who are not full environmental commission members to the standing committee.

[00:26:51] This one is a little unusual. So the EC allows standing committee members who are not confirmed EC members to participate in the standing committee. So you'll notice the highlights there for public utilities and citizen reps. And we're just required to bring this to the board every two years so that you see who those individuals are, Madam Chair.

[00:27:11] okay mr turner do you have questions mr turner madam chair i'm sorry uh i don't know where we are i cannot find the item you're talking about with a with a motion and sure it's 3b i'm sorry 3c i know

it's a little confusing because there's three threes but this one's 3c okay but before you get there mr avini so just to make sure i understand so if you're on this a standing

[00:27:48] committee but you're not on the full commission you can vote to send an item to the full commission but then you're not on that commission but you're not in the full commission to vote on that item is that correct that is absolutely correct okay that is a little confusing you're right that's how things are normally done all right um mr turner i can have somebody else make the motion if you'd like me to no that's all right i found it okay uh i move that i move that the board of supervisors approve the candidates for the environmental commission's permanent standing

[00:28:23] committees as presented in the september 16th 2025 board of supervisors business meeting action item motion made second by miss uh miss brixman discussion on the motion mr turner i have no discussion matter anybody else mr um mr brown we have an hour to kill before we going so how about you just sing to us or i have many topics that uh would love for me to discuss with this

[00:28:51] evening thank you very much all in favor please say aye aye any opposed okay any opposed that motion passed uh 603 hold on everyone we just um i can't do six because there's people here to speak

[00:29:27] on it two what this has never happened i can't do there's nobody here to speak on that item 2a corrective change hold on one second no there is there's somebody speaking on that item also All right, so as far as I can see, everything left either has speakers on it or the supervisor who wants to present that item is not here yet.

[00:30:05] So this has never happened, but it might be a good thing. I'm going to go on and go into closed session right now. We can knock off. We can address both those closed sessions right now, and then when we come out, we're kind of going to be free and ready to do everything else.

[00:30:23] Mr. Turner, are you joining us in closed session? Yes, ma'am, I can join. All right, Ms. Bricksman, will you please read us in closed session? Both closed sessions, yes. Yes, Madam Chair. I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.2-3711A3 of the Code of Virginia to consider the disposition of parcels of property in the Catoctin Election District.

[00:30:48] I further move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.2-3711A3 of the Code of Virginia to consider the acquisition of parcels of property for public use in the Algonquian District. Motion made, sir. Second the motion.

[00:31:05] Motion made, second by Mr. Crony. Discussion on that motion. Seen none. Welcome, Mr. Kirshner. I said welcome. I said welcome. Right on time. All in favor, please say aye. Aye. Any opposed? Aye.

[00:31:21] That motion will pass 7-0-2, and we are in closed session.

[00:31:28] I didn't have a talk about a closed session.

[00:57:59] Ms. Bricksman, will you read us how to close session? Yes. Excuse me. I move that the closed session be adjourned, that the Board of Supervisors reconvenes its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolutions certifying the closed session be adopted and reflected in the minutes of this public meeting.

[00:58:21] Second. Before we have discussion, Mr. Turner, are you back with us? Yes, ma'am. Okay, wonderful. Thank you. Discussion on the motion? Seeing none, all in favor, please say aye. Aye. Aye. Any opposed?

[00:58:37] Can everybody please affirm? Mr. Turner? Aye, firm. Ms. Crony? Affirmed. Affirmed. Affirm. I affirm as well. That motion will pass 7, did I say all in favor, please say aye?

[00:58:56] I said that right, 7-0-2. Okay, there's a motion, there's actually two things. There's a statement that's going to be read by Mr. Kirshner and a motion from Ms. Brixman out of closed session. Mr. Kirshner, will you please read your statement? Yes, thank you, Madam Chair. As a part of a closed session, we discussed the county-owned property located at 161 West Main Street in Percival, which previously served as a mental health, substance abuse, and development services group home, but is no longer active.

[00:59:24] Staff does not foresee reuse of the property or the redevelopment of this site. Staff has received an unsolicited offer for the property and the board is interested in taking the offer to a board public hearing for consideration.

[00:59:43] Thank you very much. Ms. Brixman, you have a motion? I do, Madam Chair. Thank you. Excuse me. I move that the Board of Supervisors direct staff to prepare a resolution to initiate condemnation and quick take proceedings as required pursuant to Virginia Code 15.2-1903B for the purpose of approving the proposed public use and acquisition of property located in the Algonquian Election District for installation of a traffic signal at the intersection of Algonquian Parkway and Hardwood Forest Drive and Noble Terrace.

[01:00:17] I further move that the Board of Supervisors direct staff to advertise the resolution for the October 15, 2025 public hearing. Motion made and seconded by Mr. Letourneau. Discussion on the motion. Thank you, Madam Chair. This was a level five intersection identified in our county research and analysis of intersections in the county level five, meaning that it was the most dangerous, one of the most dangerous in the county.

[01:00:46] A study of this intersection was conducted, I believe, last year, and half the other side of this intersection was Sterling District, so Supervisor Saines also did a lot of work on this project to get this signal put in.

[01:01:04] We have had a number of residents concerned about safety at this intersection. This motion is for basically a friendly take of a very small piece of land on the northern side of the intersection. that will enable the county to build the traffic signal at the intersection improve safety thank you madam chair thank you anybody else on this item all right all the people say aye all right any opposed is that motion i'm assuming for the people that didn't say ah you're an eye anyway right that's a 702 yes okay all right all right thank you very much i appreciate it i voted aye

[01:01:43] hi madam chair i voted aye hi mr sayings it's gonna be it's gonna be that kind of day um that motion will pass 801 um thank you mr sayings welcome mr sayings all right supervisors we're going to go on and do our um disclosures and board comments right now um as well as um appointments and so first i will go to um get get your appointments ready i'll first go to disclosures and board comments i'll do that first so mr kirschner board comments thank you madam chair um i don't have any disclosures actually let me pull it out make sure i don't have any

[01:02:24] uh on february 9th my staff and i met with a greenfield farm rezoning applicant as far as board comments um we all are well aware and i'd like to speak a little bit on last week's very public murder and political assassination of charlie kirk first my heart and thoughts and prayers go out to his wife his two little children and his extended family and friends it's been decades since we've seen such a public assassination of a national figure i think mlk and kennedy were probably the last there have been other obviously high profile but not to this level

[01:02:59] what makes this event so jarring in my mind was the very public nature of it and the instant internet access that we all had to it either live or obviously within seconds it was gruesome cowardly and done in a cold-blooded way and i wish i had an opportunity to unsee it but that's not the case but what makes this even more chilling it appears to be done in a political ideological reasons something we would see in other countries but not america expectantly there has been a massive outpouring of love and activism and peaceful remembrance of a loved figure in our society on

[01:03:38] the other hand what has been most disturbing to me has been the internet trolls and radical individuals in our society who have praised and even celebrated this evil we must collectively condemn such suggestions and in harmony marginalize such violent responses so one of this it is one thing to oppose and argue the ideology of someone you disagree with it is quite another to promote violence towards such individuals america was built on the principles of freedom of thought freedom of speech freedom of debate and individual liberty no one can deny or disagree that charlie

[01:04:15] lived by this and openly encouraged discourse from any who would engage. He wanted to understand the positions of others and challenge others to challenge himself. There are many lessons that we can learn from what has happened, but the one I think most important for tonight and my public comments is that as public figures, we must come together for the good of the country. We must allow and promote and engage in vigorous debate, but both sides must call out those who would ever suggest violence is the answer. We can talk about turning the temperature down, but the only way

[01:04:54] this happens is that we, in open debate, whether we win or lose the argument in the public square or at the ballot box. Although I often disagree with Ms. Brisman, I must commend her for taking time for a moment of silence the other night right after this had happened when she was sitting the chair. This is an action of healing and recognition regardless of your political beliefs that such violent actions are abhorrent and should never be tolerated. It doesn't matter if you agree with Charlie Kirk or not. Yes, I have one more sentence. I am grateful for this board. You can have healthy debate and still have dinner together. We must continue

[01:05:33] to advocate and debate, but together and in one voice call out any violence that would raise its head such as this. Thank you, Mr. Kirshner. Mr. Crony. Thank you, Chair Randall. I don't have any disclosures tonight, and I want to thank Supervisor Kirshner for his comments.

[01:05:52] I am also very sad about the continuation of political violence in our country, the assassination of Charlie Kirk, the deaths of Minnesota lawmakers, and the continued threats to lawmakers across the political spectrum is scary. There is rising acrimony and much we can't control, but we can control ourselves. I believe the lyrics from Let There Be Peace on Earth and Let It Begin With Me are very fitting for this moment. This song was originally written and sung

[01:06:28] by the International Children's Choir, and my church congregation sang it on Sunday, and I would encourage everyone to look up the lyrics to that song. It is very fitting for this moment and really

inspired me. The Loudoun County Sheriff's Office Master Deputy Rudolph reported that there's been a 70% increase in electric device crashes in Loudoun the first five months of 2025 compared to 2024. Some e-bikes and e-dirt bikes can travel more than 25 miles per hour. Some of them go 35

[01:07:07] miles per hour and parents think they are buying their child a bicycle when they are actually buying them an electric motor vehicle. Loudoun County Sheriff's Office recently created a web page and brochure to help parents and kids better understand e-bikes and laws surrounding such devices i'm happy to report thanks to master deputies deputy rudolph's education campaign and community policing there is now an increase in helmet usage but i know these kids are still riding them on the streets and it's very unsafe and i worry about the safety of not only the kids

[01:07:46] but also pedestrians please visit the website it's on the loudon county sheriff's office to get more information. A reminder about my Middleburg office hours, which are September 23rd from 3 o'clock to 6 o'clock p.m. at the Middleburg Town Hall. All Little River residents are welcome to attend. No appointment is necessary. And I just want to encourage everyone to celebrate our youth and schools by going to a home football game and listening to the band. The talent at our schools is incredible. I plan to take time out to attend a game at each of the four high schools in Little

[01:08:22] River District and listen to the band and cheer on the team. If you want to join me, please let me know. Thank you. Thank you, ma'am. Miss Umstead. Thank you, Madam Chair. I have one disclosure. Yesterday I had a phone call with Michael Capretti about Tuscarora Crossing. I want to thank the leesburg volunteer fire company and the leesburg police department for their um attendance and

[01:08:58] support of the town's 9 11 ceremony i want to thank mayor burke and the council members who were in attendance um that is always i think one of the most poignant ceremonies we have Um, you know, I, I was thinking in relation to, uh, Supervisor Kirshner's comments about a few years back, a, one of my constituents said, and he was, he was a Democrat, but he said,

[01:09:31] I have many good Republican friends. And he said, I don't like it when either side of the political divide condemns the other side. And I, I think Supervisor Kirshner and supervisor to crony's comments were uh in the best possible spirit tonight it's really tough when you see political violence on the rise in this country um melissa hortman the former democratic minnesota house speaker was killed alongside her husband in their home in june

[01:10:09] we lost two members of the israeli embassy staff earlier this year when they were gunned down and then mr kirk in all these cases even if we disagree with the positions taken by any of these folks we should remember that we have neighbors of whom we are very fond who very much valued those

[01:10:43] lives and so if we can't bring ourselves to feel deep sympathy and empathy for the surviving family members of any murdered individual we should remember that our neighbors are really good people And some of these people who sadly have been taken away from us mattered a great deal to the neighbors that we love.

[01:11:12] As you know, Congressman Subramaniam recently had a threat made against him and his office. A similar event took place in York County in Pennsylvania recently. So this is something that I think we as a community can work together to prevent here in Loudoun.

[01:11:33] Thank you. Mr. Sains, where are you? Are you home yet? Are you on the road? I am on the road.

[01:11:49] Would you like to comment now while you're driving or you want to focus on driving? I am hand-free, first of all, so I'm on the safe. Please keep him on the street. And I'm driving, it's safe. okay um i uh no comments or disclosures no comments nor disclosures okay thank you

[01:12:20] yeah mr um miss glass thank you madam chair uh my staff met with michael capretti uh for disclosure to discuss the tuscarora cross crossings upstation application on september 11th and 16.

[01:12:37] my staff also attended the disability services board meeting and the family services advisory board meeting i virtually attended the national association of counties of women of naco committee meeting on september 11th and i just want to briefly provide comments on two items that are were on the consent agenda i would like to recognize one of my bro our broad run students for um kiera mather on the consent agenda as a resolution to honor ms mather as the 2025 environmental protection agency president's environmental youth award recipient for her age

[01:13:17] group issued by the epa the title of her project is the the ocean has a voice which highlights the harmful effects of noise pollution on marine life the resolution will be presented to ms mather later this month in front of her classmates at her school. I would like to thank Vice Chair Turner for agreeing to present this resolution to her as I'm unable to attend. I would also like to say thank you to my colleagues for agreeing to have the board member initiative regarding the

[01:13:51] Paige Wallace lynching historical marker added to the consent agenda. I'm proud of Loudoun for seeking to educate the public about all of our history. These things are not done to shame us, any of us, but to remind us of how far we have come. Thank you, Madam Chair. Thank you. Mr.

[01:14:10] Letourneau. Thank you, Madam Chair. Disclosures on September 15th, I spoke by phone with Michael Capretti of Capretti Land to discuss the Tuscarora Land Bay 3 substation application, and then And my staff spoke with him again today.

[01:14:27] Just on that briefly, I know we'll have debate on that motion. These are difficult applications for us when we have these situations going back in time and looking at what was sort of originally envisioned there versus what is here now and what is coming.

[01:14:45] And so, you know, the way that I always try to approach it is what can we do to kind of improve the situation. And in some cases we can, in some cases we can't, and we'll get into a little bit of that as we get into the application. But I do think recognizing the reality of what's coming there, there are improvements that are being made to the overall project outside of the application that I do want to recognize that are important and important for the community that's new there and in good faith being made as part of this board consideration.

[01:15:23] So, or not this part of, but it's adjacent to the board consideration. So we'll discuss that more, but I just want to recognize the discussion there. I'll let my comments at the beginning of the meeting and the prayer kind of stand other than just to thank my colleagues for what they've said and reiterate that there's no place for political violence of any kind in our society on any side.

[01:15:48] Going back to something Supervisor DeCrooney said, I actually had in my notes to mention that there was going to be a community forum on September 24th sponsored by the Sheriff's Office in her district at Brambleton Middle School at 7 o'clock. But it's an issue I think both of us have been very concerned about because of the impacts in our communities with e-bikes and scooters and those sort of things and continue to be kind of concerned about that.

[01:16:14] And finally, on a much later note, but very eagerly anticipated, we believe that the Target in Arcola Center will be opening on October 12th. This has been eagerly awaited for many, many years.

[01:16:30] I got emails about bringing Target to the Dulles District way back when I was first selected. In fact, it was actually proposed as part of the original Arcola Center, probably in the late 2000s, and that never happened.

[01:16:45] So it's been full circle and a very long ride, but that will be a event that the residents in Southern Loudoun are very excited about to bring more shopping and contribute more tax revenue and all those kinds of good things for our community and hopefully also spur some additional other development in that area.

[01:17:03] So I'm very much looking forward to that. No more comments, thank you. - Thank you, Ms. Brixman. - Thank you, Madam Chair. By way of disclosures on September 2nd, I met with Loudoun School for Advanced Studies regarding a potential application to move their school to Algonquian District.

[01:17:20] On September 5th, I met with Anna Ritter of Walsh Kalushi and Jake Jarbo of Dynamic regarding Cedar Lake drive-through application. And on September 12th, I met with Micah Copredi regarding Tuscarora substation. I received an update from Loudoun County Sheriff's Department regarding their 287G agreement and the number of detainees who have been transferred to ICE from our ADC.

[01:17:45] And it is now up to 140 as of August 31st, 2025. So that's this year, 140. It is still unclear the charges these detainees faced, whether their cases had been fully adjudicated or if they received due process, mainly because I haven't been able to obtain that information from the Loudoun County Sheriff's Department.

[01:18:05] We do have a study from UC Berkeley who obtained information from the Department of Homeland Security, and it appears to show those transferred from our jail were mostly detained and charged with nonviolent crimes such as larceny and disorderly conduct, and many apparently still had charges pending when they were deported.

[01:18:21] None had been charged or convicted with an aggravated felony. This runs counter to what the Sheriff and Lieutenant Colonel Moser told this board during their last significant incident report. I continue to ask for more specifics and will continue to research the issue. And despite my discussion of the level of charges indicated in the UC Berkeley report, do not misconstrue my belief that our Constitution affords due process to anyone in this country, no matter of their alleged offense.

[01:18:50] As far as gun violence is concerned, this year we've now had 10,551 total gun deaths, 304 mass shootings. The deaths include 170 children under the age of 12 and 720, ages 12 to 17. You may have missed it last week, but we also had a school shooting last week where one child lost their life.

[01:19:13] And on gun violence, I just want to say, given what happened last week, I can abhor the way someone was murdered at the same time as I abhor everything that person stood for, their dangerous and bigoted rhetoric and the lies they told, the violence they potentially instigated on our community.

[01:19:32] For me, it's about the gun violence, and it's about the political violence that is happening and that is growing in our nation right now. And without the guns, a lot of types of violence would be much less severe, although we don't want any of it.

[01:19:51] Without the guns, which tend to be a permanent solution to a temporary problem, we would have a lot more people alive in this nation. Thank you, Madam Chair. Thank you. Mr. Vice-Chair Turner. Thank you, Madam Chair. At the start, really, I forgot to nominate someone. If you don't mind, I'd like to nominate Mr. John Selman to the Fiscal Impact Committee to fill an at-large representative seat, if the staff could make note of that, please. For disclosures, on Monday, September 8th, my staff spoke with Mike Romeo about the application for Hickory Woods.

[01:20:28] On Friday, September 12th, my staff spoke with Ben Wales about the application for Magnolia Rose. And on Monday, September 15th, I spoke with Michael Capretti about the application for Tuscarora Crossing substation. I have been at a loss as to what I was going to say tonight for several days now.

[01:20:48] And I'm still not sure I have it sorted out in my mind. I watched a movie last night. It's one of my favorite movies, Starman. I won't go into the details. an alien visits earth for a short period of time and and one of the final scenes um he's he's meeting someone before he leaves and he says would you like to know what i find most beautiful about your species and he says the listener says yes and he says you are at your very best when things are

[01:21:18] worst i grew up in the 60s and this is bad where our society is today is bad um and we are in a tit-for-tat across the board at every level of our society for hatred. And individually, we seem to be striving to out-hate the other person. We are pushed back into our corners in a way that I've never seen before. And the most disturbing thing to me is that the mechanisms of

[01:21:52] our government, which normally function as a check and balance on this kind of rampant hatred, are just not functioning. And it's a very scary time. I grew up in the 60s, and it was pretty bad with the height of the Vietnam War and the protests and the violence and the riots, the civil rights riots in 67. I grew up during those times, and it was pretty bad. And I don't think we're there yet, but boy, we are headed there on an express train, and it scares the heck out of me. And so as I contemplated what to say tonight, honestly, I'm really—I applaud of my colleagues, several of them tonight, who have come to the same conclusion. We're public

[01:22:30] officials, and all we can control is our own actions, and we can choose to reject hateful rhetoric and hate itself. That is not just our privilege. It is our obligation as elected public officials. I believe we have to set the standard. I don't know what that looks like. I don't know what it feels like. I have a friend who's a MAGA who is a friend, and yet he's a MAGA. And I don't quite know how to reconcile that, but I do every day because he's a friend. I've got to focus on who I am as a human being, and that is not going to include hate from now on. Thank you, Madam Chair.

[01:23:06] Thank you. So for my disclosures, I met with Digital Realty on September 4th. I've talked several times to Michael Capretti, and my chief of staff met with Greenfield Farms on the 12th. So my comments may sound a little bit different than my colleagues, and I hope that's okay, Because we often believe that we can only hold one feeling at a time.

[01:23:30] That is not true. As a therapist, I know that the wonderful complexity of humanity is that we have the emotional capacity to hold more than one emotion at a time. I have found that right now that's true for me. Obviously, no person, no person should be gunned down.

[01:23:48] no person should be murdered. Not kids in schools, not lawmakers in their homes, not political antagonists. No person should be murdered. And I absolutely hold empathy for Mr. Kirk's wife,

for his children, and for the people he cared about and cared about him. At the same time, I don't feel the need to sugarcoat or ignore or gloss over some of the behavior that Mr. Kirk himself engaged in while he was living. A death, even a horrible death, does not automatically

[01:24:24] erase the harm a person did in his life. In my opinion, Charlie Kirk engaged in promoting political violence and the vision. It was couched in free speech, and indeed it was free speech. But free speech can be damaging, free speech can be harmful, and free speech can even be dangerous.

[01:24:44] So while I hold empathy for Mr. Kirk, in fact, I hold empathy and compassion for our entire nation right now, and I pray for our nation as a person of faith, and I believe that as I struggle with all the feeling, God understands that I'm struggling with these feelings.

[01:25:04] He understands that we honestly struggle when things happen with conflicting feelings, holding compassion and empathy and feeling completely, absolutely sure that Mr. Kirk should not have been gunned down and that we have an issue of guns in America.

[01:25:21] I also do not feel the need to sanitize Mr. Kirk, somebody who pressed against my community, pressed against many communities, and in my opinion, put many communities in increased danger.

[01:25:39] So I can hold compassion and empathy for him and his family, and at the same time, not decide that just because he has died, and God knows I wish he hadn't, and in this horrible way, I am going to sanitize and overlook that.

[01:25:57] We do not become stronger as a nation by simply glossing over things. We become stronger by talking them through and facing them head on. And that's what I intend to do. Thank you. And thank you, everyone.

[01:26:16] Ms. Glass, what we're going to do right now is go to your item. Oh, well, yeah, okay. Well, yeah, let's do the nomination. Mr. Sains, are you still in the car? Mr. Sains?

[01:26:35] I'm here. I'm getting ready to jump off and get on a different device. So give me about five minutes, but I'm going to jump off. Do you have any nominations before you jump off and get on a different device? No, ma'am. Okay, Mr. Turner, we heard from his already. If you have any other nominations, please put your light on.

[01:26:52] Ms. Bricksman. Thank you, Madam Chair. I nominate Dr. Jeffrey Magid as the at-large citizen representative on the other post-employment benefits investment committee. Okay, and we've heard from Mr. Turner already. Ms. Glass, we're going to go on and do your BMI, or actually it's a response to your BMI.

[01:27:13] You did put a motion on the dais, Ms. Glass, and I got to tell you, I'm a little confused by the motion, so I look forward to having you explain your motion to us. Is there staff that's going to come to the table on this item? Can you come to the table, please?

[01:27:31] And this is item number 10, supervisors. Wow. Oh, a lot of folk at this table for Ms. Glass.

[01:27:59] is a 12-slide presentation. Ms. Glass, I'm assuming you want that presentation, correct? Yes, Madam Chair. Okay. We're ready when you are. Thanks so much. All right. So we're going to get rolling. The presentation is going to be called up here in a minute. Good evening. I'm Susan Glass, Program Manager in the Department of Transportation and Capital Infrastructure, and I'm going to be presenting

the Waxpool Area Traffic Studies item which was provided in response to a board member initiative i am joined by dtci's director

[01:28:36] shireen darazio and also on my right by carolina segunza who is a senior transportation engineer in our department additionally we have uh dan galindo at the end of the staff table he's the director in DPZ, director of Department of Planning and Zoning.

[01:28:56] And he's here to answer any questions you may have regarding the legislative application that's in the study area. Additionally, we have Kristen Brown, director of the Office of Management of Mapping and Geographic Information. And if we need to, we have DTCT's consultant for the study, Rakesh Mora from RK&K, waiting in the wings in case there's any technical questions that arise good evening everyone okay

[01:29:28] ready all righty so uh there you go uh this item comes to you from uh action that was taken on july 2nd 2024 where the board approved two items uh the excuse me the first one is the tillage view legislative application that was approved after a lengthy review process that property is located on the northeast quadrant of the intersection of waxville road and belmont ridge road and it allows up to 300 residential units to be developed the board member initiative

[01:30:07] that was brought forward by the broad run district office for the study to be conducted was approved by the board in a split motion so motion one was to initiate traffic studies for auction barn drive ianis spring drive laurier drive and waxpool road from belmont ridge road and rename turro parish road and a portion of waxpool road between belmont ridge road and true parish road true parish drive the second motion was to study a comprehensive plan amendment

[01:30:45] a cpam to remove waxpool road between belmont ridge road and black angus drive and to add black angus drive from belmont ridge road to waxpool road to the ctp this slide depicts the study area which is near the vicinity of waxpool road east of belmont ridge road it extended to toro parish drive to the north and it includes several roads that are located in the village of waxpool subdivision and that area is shaded in yellow as you can see on the map hopefully

[01:31:26] this portion of belmont of waxpool road makes a couple of 90 degree bends between twerro parish drive and belmont ridge road within the study area there's two public schools waxpool elementary school is notable because it's located on black angus drive just east of belmont ridge road and north of waxpool road the future tillots view development will be situated along both sides of black angus drive it's going to have 199 single-family attached units

[01:32:06] which will be in the western quadrant of the property and could have 101 single-family detach units on the eastern side of black angus drive both portions of tillits view will be accessed by both black angus drive and waxpool road the portion of waxpool road that is located in this study area is classified in the 2019 county-wide transportation plan as a two-lane

[01:32:37] collector two-lane neighborhood collector road while black angus drive is not really classified in the ctp it's just a local road the study which has provided an attachment one of this item we i'm just kind of summarizing the recommendations the findings and recommendations here the data for the study was collected in march 2025 which was after the widening of belmont ridge

[01:33:13] road was completed you may recall that wax that belmont ridge road used to be a two-lane road between tarot parish drive and crowson lane and that the road construction took almost two years to

complete um the July 20 July 2nd 2024 BMI requested a study of traffic calming on specific roads auction barn drive Cochran's Lock Drive Iana Spring Drive and Waxpool Road the evaluation

[01:33:48] performed on these roads was conducted in accordance with the county's residential traffic management guide which has specific criteria that must be met in order to implement traffic calming measures two of the roads that were studied auction barn drive and Cochran's Lock Drive already had traffic calming measures applied to them the other roads do not meet the traffic

[01:34:18] calming criteria in the county's guide which those pertain to travel volume traffic volume and speed the study did note that the 85th percentile speed on Waxville Road east of Blank Black Angus Drive is nearly 10 miles over the posted speed limit therefore it recommends implementing pole mounted display pole mounted speed display signs BMSDs along with some signage

[01:34:54] to alert drivers to a pedestrian crossing at Ionis Spring Drive we note that the Tillits View Proffer 9i provides for traffic calming on Waxpool Road in the event that a comprehensive plan amendment is not initiated or if it's denied the item itself attachment 2 provides the Tell Its View Proffer statement another aspect of the study was the cut through traffic analysis and that was again

[01:35:32] conducted in accordance with a residential traffic management guide and that sets forth that criteria for the minimum trips you have to have 150 cut through trips occur in one hour and in one direction and have 40 or more of the total one hour single direction volume must be cut through traffic based on the data collected in the study the analysis was performed and those criteria

[01:36:07] were not met so that doesn't miss glass do you mind saying that criteria again please I'm sorry I missed it okay 150 vehicles cut through vehicles traveling in one hour in a single direction cut through vehicles cut through vehicles okay thank you and there's an and that goes with that 40 or more of the total one hour single direction volume must be cut through traffic

[01:36:42] so the study found that there was no cut through traffic in that village of Waxpool subdivision finally the the road renaming I don't understand the board item addresses that as well I just don't understand the board had asked to have True Parish Drive renamed to Wax Full Road and have Wax Full Road between Belmont Ridge Road and True Parish

[01:37:16] Drive renamed the cost to do that total cost would be fifty five thousand dollars fifty five thousand six hundred and ten dollars there's adequate funding in the traffic sign replacement program capital account to do that. And we note that we recommend to wait till after election day to implement those changes. The next slide shows what the proposed renaming would look like.

[01:37:48] And I don't know whether, Kristen, do you want to take this? I should explain that because that sounded really funny. Wait till after election day to make those changes. You got to explain what you're saying right there. Because it sounds like, that sounds bad because there's a polling place sorry that's there we go one of the polling places let's clear that up thank you very much media you got that back there you're good we're fine okay just wonderful all right keep going um chair Randall and supervisor glass I can speak a little further

[01:38:26] to the street naming recommendations that we've made um as you know Wax Pole is one of our most unique roads and in the many ways it takes turns um I think it's actually interesting what we see of Waxpool now is actually very similar to how Waxpool originally looked it's just been straightened out as new roads have been built and intersected into it and so to make the change when there is an existing non-

conformity we do look to the ordinance and we recommend following the ordinance where at all possible and so the the renaming from true or parish would be possible we would

[01:39:04] call that wax pool that section is route 2119 so it would stay the same route number the portion of wax pool that is 900 that currently dog legs we recommend two different names now the ordinance speaks to there's a portion in the street naming ordinance chapter 1020 that speaks to continuity standards and that speaks to how roads change names through intersections when there is not a standard that specifically covers a particular type of intersection the ordinance gives permission to the director to determine if there's a public safety

[01:39:43] impact to using a particular name or not using a particular name in this case there's actually not anything specifically in the ordinance that speaks to how a t intersection may or may not change names if this road were being named today what you see in purple on the after would all be one name and the yellow one the yellow portion would have a second name that would require that we would change the name of sydney place to sydney drive and we would name the entire length of that

[01:40:20] road to sydney drive um before making any recommendations on that continuity standard because again the specific circumstance is not covered in the ordinance i did reach out and have a discussion with public safety it is their recommendation that that be the same name and as i included in the item we recommend changing place to drive place is very specifically a street type designation that refers to a cul-de-sac or dead end from which another right of way originates that other right of way is called a court and that is how

[01:40:58] sydney place is named there's a court that extends from it thank you okay okay we're ready yeah another aspect of the study uh examined the potential impacts that would occur if waxpool road between belmont ridge road and black angus drive were removed from the county-wide transportation plan through a comprehensive plan amendment which would allow

[01:41:31] the intersection of waxpool road and belmont ridge road to be closed i think you need to advance it the study concludes that if the segment of waxpool road gets closed it would significantly increase traffic on black black angus drive and degrade the level of service at the intersection of belmont ridge road and black angus drive the closure of belmont ridge road and waxpool road intersection may also cause drivers to cut through the village of waxpool to avoid black angus drive

[01:42:10] for those reasons initiating a comprehensive plan amendment is not recommended the study does make a couple of long-term recommendations to be implemented in the long term one of which is to conduct a right turn warrant analysis to add a right turn lane from belmont ridge road northbound belmont ridge road onto waxpool road and the other is to consider a

[01:42:46] traffic signal warrant analysis for the intersection of belmont ridge road and black angus drive it is noted that the tillits view proffer 9g provides for the developer to fund that signal justification report at a future level of development our staff recommendations this evening are to have the board endorse the waxpool area traffic study findings as presented in this item which includes retaining the current configuration of waxpool road in the county wide transportation plan additionally staff recommends that the board authorize a proposed

[01:43:24] renaming of toro pairs drive along with a segment of wax bull road that's discussed in this item and that concludes staff's presentation we are here to answer any questions that the board members may

have okay supervisors there is a motion on the dais from miss glass and i think we can probably have the discussion and answer the questions inside of the motion that miss glass has put on the day is because we all received the motion um today already do you not have it mr kirschner okay it looks like this yeah i saw a few minutes okay all right miss glass would you like to make

[01:44:03] your motion yes madam chair thank you i move that the board of supervisors endorse the village of wax pool traffic study findings as presented in attachment one to the september 16th 2025 board of supervisors business meeting action item and defer the proposed study recommendations and proposed remaining i'm sorry renaming of true paris drive route 2119 and a segment of waxpool road route 900 as depicted in attachment four to the september 16th 2025 board of supervisors

[01:44:39] Business Meeting Action Item to the December 2nd, 2025 Board of Supervisors Business Meeting for Action. Okay, so that motion was seconded by Ms. Bricksman, but before we discuss the motion, I need a point of clarification. Oh, Mr. Crony, I need a point of clarification. Are you speaking about the CPAM as well in your motion? No. Okay, then go on, because... No, Madam Chair.

[01:45:11] All right, all right. Discussion on the motion, Ms. Glass. Can I ask questions to staff? Of course. Okay. And staff, thank you for your presentation.

[01:45:27] As part of the Belmont Ridge Road widening, and you had discussed it a little bit at the end of a couple of things that you would, we would look to in the future. But for, as part of the Belmont Ridge Road widening, widening why was no right turn lane constructed from northbound belmont ridge road to eastbound wax pool road ma'am we need to take that for action and research exactly why and get back to you i'm sorry we need to take that for action and research it and get back to you okay okay

[01:46:08] my second question is what caused the traffic signal at truro paris drive and wax pool road not to be warranted i remember that during the tilt dispute application that intersection was already failing and we were confident that it would warrant a signal so the signal justification report was recently requested by the developer and processed through our department dtci the findings were none of the warrants were met and i don't have the specific in terms of the

[01:46:45] traffic counts i can forward the um the signal justification report to you it may be that during the consideration of tillage view when that traffic impact study was prepared belmont ridge road was a two-lane road or it may have been under construction and traffic was being kind of of diverted over to Truer Parish that's okay our answer on that okay because my

[01:47:20] concern is we've been having conversations with my constituents and I believe was a couple of weeks ago that there was an accident at that intersection with a car turned over so I definitely want for us to look into that. So instead of extending the name of Sydney to the to the west on Waxpool Road and changing the name from Sydney Place to Sydney Drive, could that portion of Waxpool Road be renamed something other than Sydney? Well I'm

[01:47:58] concerned because that would prevent the readdressing of additional homes on the current Sydney Place. Supervisor Glass our recommendation is that if we use the name sydney that the the cul-de-sac be renamed sydney drive the ordinance does not specifically prohibit the situation um that we have here where where it would effectively be three roads teeing into each other and so that is why we when that situation is not specifically

[01:48:32] disallowed i speak with the public safety first responders and discuss if this is something that would create a public safety issue okay to allow okay their recommendation is that that have the same name okay um and so the continuity standards do allow uh do allow us to to make a determination if we think something could be a public safety response concern so that that is what i can say to you it's not specifically disallowed it is recommended that it be the the same name okay thank you and it is how it would be named if those roads were to be constructed from new

[01:49:09] okay thank you Ms. Glass for the purpose of this conversation again this is point of clarification would you like to say what what how you would dispose or not dispose of the CPAM issue I mean if if I don't make a motion it doesn't occur so that's why well that's not true so that's with the respect that's not true so are you just saying you the motion you made we can we can infer that you do not want to do the CPAM in the motion that you made exactly okay thank you mr letourneau okay everyone's well i was just going to ask the question because the language

[01:49:44] is drafted endorses the language as the motion as made endorses the village of waxpool traffic study findings as presented in attachment one which by endorsing and bringing that in by reference would preclude the cpm so i'm i'm not trying to include the c pam i'm just trying to make sure that the traffic study findings we we're able to defer that and so that i can have a conversation with my constituents regarding the changes needed so then we may have to you may have

[01:50:24] to you may have to add something to your language to for that to be a little more clear and we're and you can kind of noodle it over and adjust your ingest your language just so it's clear okay all right mr letourne just to be clear mr hempstreet said preclude not include so he's saying that by endorsing the findings there is no cpam and that's what you want to happen that's what i think is consistent and that was honestly why my life i was just going to say that because staff is saying don't don't close the intersection right so by accepting the findings we're saying we're not closing the intersection right okay all right all right i just want to be

[01:51:01] sure because because because i wasn't um mr mr turner i have nothing manager mr sanes i have nothing uh awesome i'm sure all right um miss brixman i i think that i think that my question was answered but i'll just double check the uh by accepting and endorsing the findings

[01:51:33] then we are accepting the recommendation that we don't do the cpam i agree with that okay okay great i'm happy to support then thank you my only question is miss glass this september 16th you you don't want this on the agenda to the last meeting of the year because we probably won't have a second meeting in December.

[01:51:57] Is it not possible to put this, I mean, that's a long way off. You won't have a community meeting before the second meeting in December? I mean, that's all of October and all of November. If you want to move it to November, we'll see if we can.

[01:52:14] I mean, well, I don't want to. I'm not saying I want to or don't want to. you have time to have a meet have a meeting with the would you have time to have a meeting with the community by the first meeting in november uh on the spot i'm not sure um i can i can leave it here it's just that that that meeting is the last meeting before break and so that can meeting can be a little that that can be a dicey meeting sometime that's all i'm saying to you okay but if you if you think that's what you when you how long you need then that's miss glass i'm sorry

[01:52:49] madam chair i'm sorry i'm asking you the question ma'am uh go ahead and put it for november okay let's put that for the first meeting when for that let's and i'll make a friendly to adjust the motion to be the first meeting in november okay okay question because i really don't care either way i'm just asking you are you sure you're going to need this much time i uh i haven't had a conversation with the community to see if there's an opening during that time so that's why i was

[01:53:25] Thanksgiving a couple of months so that we could schedule in. Is it possible to? Sure. And it's a weird time of year because we're walking into the holidays. So sometimes there's a second meeting in November, depending on when Thanksgiving falls.

[01:53:41] We know there's almost never a second meeting in December. So again, you're going to the last meeting before the year's out, which is also a time we do sometimes the our employee reviews and all those kind of things on that meeting that's why I'm just trying to be real sure that you have enough time for that but if you want this let's leave it there and how about this let's leave it there for now and if you want to change it in another meeting we can bring back and do that okay how's that all right thank you all right motion was made by supervisor glass second by supervisor to crony is that correct all right all

[01:54:15] people in motion please say aye aye aye aye any opposed that motion will pass 920 thank you thank you thank you thank you all right we're going to go where are my resolutions to res we're going to go to resolutions the proclamations and then we're going to go to public comments i will say on the um one of our action items just give me just one second everybody for people who are here for public comments

[01:54:51] For item number nine, which is the -- we took that off of consent. It's the Enhanced Proactive Zoning Enforcement for the Algonquin Electric District.

[01:55:07] The decision had already been made some two weeks ago to not do that Enhanced Proactive Zoning. That decision has already been made. It was on consent, which means it was going to go -- we were going to say we're not going to do it and just pass it through.

[01:55:23] We took it off consent because I saw people want to speak on the issue. And so if somebody wants to speak on the issue, I never put things on consent. If you want to speak on the issue, absolutely doing public comment, absolutely speak on the issue. But just so you know, I think we've already, the motion was already not to, but, I just want to tell you all that, but absolutely if you want to speak on the issue still, speak on the issue still.

[01:55:47] Okay? We're good? Okay. All right. first and Mr. Letourneau will you please join me down front for the

[01:55:56] proclamation for childhood cancer awareness how are you thank you well it

[01:57:37] may be them thank you for being this here good evening so this is a proclamation that brings annually, and we wish we didn't have to, but I always say at the beginning that although it's recognizing something that's very sad, this gathering that we have always gives me hope because of the incredible work that's being done by the folks behind me and many,

[01:58:14] many others out there to address the issue of childhood cancer. So I'll go ahead and read the proclamation whereas childhood cancer describes more than 12 types and many more subtypes of cancer affecting children which typically cannot be attributed to environmental or lifestyle factors and whereas many of these cancers are specific to children but some affecting only those under five years of age and

there is no early detection model for childhood cancer with the cancer typically spreading to other areas of the body before it's identified and whereas in the united

[01:58:48] states nearly 16 000 children under the age of 19 are diagnosed with cancer each year making cancer the leading cause of illness and death for children in the united states and whereas there are over 500 000 survivors of childhood cancer in the united states many of whom do suffer from late medical effects from treatment and whereas local organizations and initiatives such as ellie's hats

[01:59:13] I Promise 15, Hope Faster, Smashing Walnuts, Team Matias, Sarah's Act of Kindness, Rally Foundation Virginia, the Quinn William Gorman Scholarship Fund, and more are working to raise awareness of childhood cancer, support patients and their families, and fundraise for research.

[01:59:33] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 2025 as Childhood Cancer Awareness Month in Loudoun County. First of all, I'm going to ask anyone to speak who went to.

[01:59:53] We're happy to have you back, and thank you for coming back. If you follow the social media of the people who are standing up here, I say this every year. What you all are doing in the end is advocating so that no other parent or family goes through what you all went through with your children.

[02:00:15] And I find that it is astounding that with such a loss that you can come and advocate for nobody else to feel that loss. I say this to you every year, that every year I say to you that you've taught me so much.

[02:00:34] I did not know before you taught me that there hadn't been treatments for childhood cancer for years, although there have been treatments for other kinds of cancers. Almost every time I go to Capitol Hill, I find you there. and you continue to advocate, and that's true for all of you.

[02:00:51] I think the other thing that happened this year is I noticed some of you are starting to say that you're starting to pass a date where you've not had your child longer than you had your child. And I remember when I started reading those, I just thought, for me, I thought, okay, let's pray, because that is a very hard thing to hear.

[02:01:13] But the, I don't know what the word is, the strength, the courage, the compassion it takes for you all to do this every year. So that no other family has to do this any year is absolutely astounding.

[02:01:29] So I appreciate you all very much. Who would like to speak? Would you like to introduce yourselves and the child that you are holding? This is our daughter, Sarah Willis. We lost her in 2018. And we are Sarah's acts of kindness.

[02:01:45] We are trying to find a cure. Fortunately, I have not lost a child with cancer. I had a student of mine who had cancer, and that's how Ellie's Hat started many, many years ago. I've been here as long as anybody.

[02:02:08] Gabriella died in 2013. She was 10, and when she was still alive, we started the Smashing Walnuts Foundation. And thanks to my better half here, federal legislation, three rounds, two and a half rounds, totaling in the neighborhood of \$202 million, will go towards the NIH to help fund childhood cancer and disease research.

[02:02:34] So it's all for her. Hi, my name is Emily Belcher. This is my daughter, Caroline. This is an older photo of her when she was first diagnosed, but she passed two years ago when she was 14.

[02:02:51] I'm thankful to stand up here among all of these folks who I've known for, unfortunately, a lot of years because of our connection. But I am also thankful to say that we work together and we've done a whole lot of good, most of them more than me.

[02:03:09] But the childhood cancer community in Loudoun County is very strong and alive. And many thanks to you for continuing to allow us to have this platform and work together. And we just look forward to continuing all of those efforts.

[02:03:29] Hi, I'm Peter Gorman. This is my wife, Nikki. We lost our son, Quinn, in 2022 after a four-year battle with osteosarcoma. He was just 13 years old. He was one of the most empathetic, brightest young people I've ever known in my entire life, and we miss him every single day.

[02:03:50] We established a memorial scholarship fund in his name within a few months of his passing to keep his memory alive and also keep his love of education out there for Loudoun County students. My name is Roya Giordano, and this is my husband, Chris.

[02:04:09] We also lost our beautiful, handsome, athletic, brave son to osteosarcoma, which is bone cancer at the age of 13 in 2014. In his loving memory, we've established a pediatric cancer foundation named Team Matias, and we help support local families with anything from dinner to their bills and so on and so forth with sadly sometimes with funeral costs and we also have a fund in Matias's name at Inova Schar Hospital in Fairfax where so far we've paid or

[02:04:49] we've donated over \$600,000 in his name we also passed a bill in his name in the state of Virginia for cure cancer license plate it's a non-revenue plate We actually worked closely with Ellie's hat to do that. And now when you drive around, you will see the gold ribbon on the cars, and that represents all of our children and their legacy.

[02:05:16] So next time you see a pink ribbon and you think about breast cancer, because we all do it, I encourage you to think about our children when you see a gold ribbon. And when you leave here tonight, you will see the gold ribbons on the meters everywhere in downtown Leesburg. Our foundation buys those and puts them up every September because we're so blessed to have this platform to be able to do this and educate our community.

[02:05:40] Our goal is to help you navigate, God forbid, if you're a child that you love ever gets diagnosed with cancer. We don't want anyone to feel alone or, you know, lonely. Like, we want to carry you all the way.

[02:05:55] So that's why we're here. Thank you for giving us two minutes to talk. Okay, we're going to, anything else, Mr. Letourneau? Okay, does everyone have a copy of their, I'm sorry. Okay, let's pass them around and then we'll take a picture.

[02:06:14] We haven't, that's diaper, that's diaper, it's diaper awareness. You don't want to pass that? We don't want to pass that? No, no, that's diaper awareness. A couple of our colleagues are here. That's diaper awareness. Okay, there's a diaper awareness.

[02:06:33] I need the constitutional one for mine. My staff, I need my constitutional one next. These are all diaper awareness.

[02:09:02] Would everybody please come down for Constitution Week? You guys are not working with your glasses. Hello. Hello, hello, hello. Oh, thank you. Thank you.

[02:09:19] How's everybody doing? Hi. How are you? Everybody's good? Thanks for coming, as always. Next year's a big year, huh? Next year's a big year. By the way, Hamilton's on the big screen right now. If you haven't seen Hamilton, go see Hamilton. It's on the big screen at the movie theaters.

[02:09:37] I've seen it twice on the big screen. It's phenomenal. So just so you know. Okay. I am reading this for Mr. Kirchner because he didn't have his glasses. And he's getting old, so he can't see. He's almost fifth. He can't see. Yes, because I take care of mine. I'm going to take care of that all the time.

[02:09:56] Okay. Constitution Week. Whereas Constitution Week, originally Constitution Day, is the celebration of the 1787 signing of the U.S. Constitution in Philadelphia, Pennsylvania, and whereas in 1955 the Daughters of the American Revolution petitioned Congress to recognize September 17th through 23rd as National Constitution Week to celebrate the liberties, freedoms, and inalienable rights granted by the document and whereas the public law 915 was passed on August 2nd, 1956 by President

[02:10:34] Dwight D. Eisenhower to guarantee the issuing of a proclamation each year by the President of the United States of America designating September 17th through 23rd as Constitution Week and whereas September 17, 2025, marks the 238th anniversary of the drafting of the Constitution of the United States of America by the Constitutional Convention, and whereas the Loudoun County Board of Supervisors encourages all to learn more about the creation and signing of our

[02:11:13] nation's most important document and reflects on the rights and responsibility of citizenship and what it means to be a U.S. citizen. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby recognize September 17, 2025 through September 23, 2025 as Constitution Week and encourages all Loudoun County residents to commemorate the history and importance of the U.S. Constitution and learn more about how the document still influences our lives today.

[02:11:50] So, ladies, and we have all ladies here, yeah, right. Thank you for coming out, and thank you for all the work you do to ensure that the education, remembrance, and the tremendous principles that are found in our Constitution remain or declared and obviously encouraged in our education system.

[02:12:12] I think it's one of the greatest documents, next to probably the Bible, of my personal opinion, who ever have been created and founded a nation which has been the greatest nation with all of our problems and whatnot in the world and has really set the principle, the founders of that document really set the foundation for some tremendous principles that we have been able to find our way. And now nearly 250 years from the declaration itself, not from the constitution, but 250 years we have remained a nation, a democratic republic, which is a tremendous, If you look at other nations throughout history, and a free people nonetheless.

[02:12:51] So thank you so much for your work. Anyone else would like to say anything? So I will say, first of all, also thank you all for coming. And I know you all had some new people that you initiated this past year. Yes, you did. And I really appreciate that. And thank you for that. I've said this to you all many times.

[02:13:08] I am the daughter of military. My father fought in the Korean and Vietnam Wars and two tours of duty in the Vietnam War. And growing up, my mother and father told us every day, all of us, all of my many siblings, that this is the greatest country on earth, and the price to live in this country is to serve.

[02:13:27] And for all of its flaws and foibles, I still believe this is the greatest country on earth. And I say all the time, I am in love with my country. And if I criticize it, it's because you often criticize things that you care about or in love with. But I am in love with my country.

[02:13:43] And I appreciate you all coming here every year, and I look forward to the heavy lift of next year. You guys have a heavy lift of next year. And let us know in all the ways we can help next year. I think it's going to be fun. I think it's going to be exciting. I think you're going to be really busy.

[02:14:00] So would you like to speak? Sure. I would just like to say I'm Lori Follis, regent of the Catoclin Chapter, National Society Daughters of the American Revolution. And also we have Ann Ballinger, regent of the Mary Hemings Bell chapter. And on behalf of the National Society Daughters of the American Revolution, we do want to thank you, Chair Randall, and the Board of Supervisors for taking this time to recognize Constitution Week.

[02:14:27] And it was 238 years ago that our nation's founders signed the Constitution, a sacred charter of liberty that has guided this country through, excuse me, many trials and triumphs and the principles as you were mentioning Supervisor Kirshner are those that we need to hold dear and pass on to our students and our children those are the principles in the constitution of freedom of faith of duty and of personal responsibility so we are deeply grateful that you have taken the time to recognize that tonight thank you and the liberty and justice

[02:15:06] for all part there you go let's figure out how to take a picture how about you get you get in the [02:15:11] center like i don't down front miss glass and miss umstead would you all join me down front please

[02:17:16] over someone once i'm mr crony i'm sorry yes yes yes i'm sorry okay one person wants to step on this side of me wonderful okay the first time i heard about this i thought but then when i realized how important to the health of a child um that fresh diapers are it really hadn't struck me until that moment so thank you and i'll read the resolution and whoever wants to talk and talk

[02:17:46] all right okay whereas diapers are necessities for families with infants and toddlers as well as individuals with medical conditions and are essential in providing a clean dry healthy environment and whereas according to 2000 a 2023 study released by the national diaper bank network 47 percent of families with young children struggle to afford diapers that means almost one in two u.s. families with young children face difficulties paying for essential supplies

[02:18:23] and whereas shortage or lack of sufficient access to diapers can impact not only health and hygiene but also the well-being of caretakers and parents with 28 of those reported facing difficult affording diapers stating that they skip meals to afford them. And whereas to meet this growing need, organizations like the Northern Virginia Diaper Bank, Nova Diaper Bank, dedicate themselves to distributing diapers through the regional collaborations. And whereas by working together,

[02:19:00] we can ensure that all babies have access to clean diapers and other basic necessities required for them to thrive and reach their full potential. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby recognize September 15, 2025 through September 21, 2025 as Diaper Need Awareness Week and encourages the Loudoun community to share information and resources to tackle diaper shortages and to seek out ways to get involved either through volunteering at the local diaper band or hosting diaper drives of their own.

[02:19:38] Thank you, ladies. I just wanted to thank everybody, and thank you, Chair Randall and the Loudoun County Board of Supervisors for supporting us. We've been, since 2017, supporting families.

[02:19:56] We're up to almost 1.6 million diapers served to 44,000 children. And recently, we've been working with other diaper banks in the state of Virginia, and so we're proud to just share our resources, and it really does make a difference.

[02:20:14] People have to have, families need diapers, so people can work, people can go to school, and children are kept much safer and healthier, so it reduces medical expenses. But we're all volunteers.

[02:20:29] There's six or seven of us volunteers, and our heart is in it. but we really do appreciate the support of the community thank you thank you all right here you go and we're going to take a picture yes you can clap for the diaper bank people have changed more diapers than all of us can you

[02:21:10] just give me one second we're going to go to public comment i just need to find my sheet of

[02:22:52] paper get myself organized okay okay we're going to begin public comments right now if you are speaking remotely I will ask the moderator to make sure you are ready to speak Anthony can you hear me I can hear you loud and clear wonderful thank you so much all right everyone please know that

[02:23:31] your comments will be allowed at two and a half minutes please note that there was a slight delay between the broadcast and the online stream, the live meeting in the boardroom, we will begin the public comment period, and I will call on speakers, and I'll try to call people like three people in advance so you know that you're up next.

[02:23:52] After I call on the last speaker, the comment section, the public comments were in, so if I say this is the last speaker and then somebody runs in the door at the last minute, I'm sorry, but we've just ended public comments. I do want to thank everyone who comes out to speak.

[02:24:07] I know it's not always easy to come to a meeting, but we really do appreciate you being here. Just as a reminder, as I look for the list, the way -- thank you. The way I do this is that anyone who is speaking on issues on the agenda will speak first, and people who are speaking on issues not on the agenda, you're going to speak last.

[02:24:29] But we have plenty of time for everyone to be heard tonight if you'd like to speak. So, our first speaker is Brett Sposa, followed by Emily Kassenbaum, followed by April Sullivan. Good evening, sir.

[02:24:48] Ascora Substation. So, good evening, Supervisors. Expectations are everything, and Loudoun County residents should expect elected officials to put residents first. Unfortunately, after watching poor decision after poor decision by the board, those expectations have sadly changed.

[02:25:05] I've had to watch my wife spend her entire maternity leave fighting for our community so we don't become the next Hiddenwood. She spent countless hours researching, educating our neighbors, passing out flyers, and seeking legal counsel. That should have been her burden, but she was left with no choice.

[02:25:23] We sincerely appreciate the folks that took time to meet with us, but I think it's extremely telling that everyone met with the developer while most of you ignored our request to meet. Sadly, you heard only one side of the story. Some promised to walk the neighborhood, but never came. Some never responded at all.

[02:25:39] Meanwhile, the developer has undoubtedly told you they met with us on multiple occasions to listen to our concerns. Give them a sticker. They checked the box. They ignored our concerns entirely and pushed the cheapest, easiest path for their bottom line. That's not partnership.

[02:25:55] It's exploitation. If they had listened, they would have put in a real effort to explore moving the substation to a different part of Land Bay 3, which was brought up early on in the process. But let's be honest, listening and trying to help the residents in the surrounding community was never part of their plan. This is bigger than one substation.

[02:26:13] Loudoun is at a tipping point. If you approve this, you signal to every future developer that they can plant substations in major utilities and residential areas, and the board will look the other way. That precedent is dangerous. It tells residents that your policies don't protect them and that their voices don't matter.

[02:26:30] Your job tonight is not to clean up a developer's mistake or ease their costs. Your job is to uphold the comprehensive plan and protect the families who live here. That means voting no. This is your opportunity to right the ship and change our expectations. Do not let Loudoun become a county where residents expect to be sacrificed.

[02:26:48] Show us that our voices matter. Vote no, or if you have to, please push this vote to a later date and actually explore moving the substation to a different location on Land Bay 3. Thank you. Thank you. Ms. Busser, can I ask you one quick question? Okay, first of all, there's no clapping in the boardroom.

[02:27:06] There's no cheering nor jeering, and that's not my rules, the rule of our board and the rules of order of the whole board, because cheering and jeering can just get out of control. You can jazz hands if you want to show support, but we don't do clapping. So thank you for that. I do want to ask one quick question.

[02:27:22] Is there any particular person who speaks for the whole community, or is everyone kind of speaking, saying the same thing maybe, but speaking on their own? Is there a group leader? I mean, me and my wife, I would say, particularly.

[02:27:40] But, I mean, we have an HOA, but the developer is the president of the HOA. That was kind of my question. Yeah. All right, thank you. So that doesn't help. Thank you, sir. Emily Kassenbaum, followed by April Sullivan. Thank you. Thank you. Followed by Salencia Hanna.

[02:28:01] I think that's the name. I'm sorry if I mispronounced that. Good evening, ma'am. Oh, hi. Good evening. My name is Emily Kasabian, and I am a resident of Tuscarora Crossing across from the substation proposal. When I was here in July, there was a lot of questions around what was said, promised, and discussed during the 2019 public hearings.

[02:28:26] So I went back and I watched the videos from those hearings. And I can confirm that both the county and the developer specifically stated that a substation would not be needed and the project was approved on this basis.

[02:28:43] If a substation is now required, that is due to poor planning by the utility provider and the developer, and it is not the board's job to fix that. Tonight's vote is not about whether or not to approve a substation for an already approved data center.

[02:28:59] Tonight's vote is whether it is appropriate to put a major utility in this location. The general plan requires that utilities be compatible with their surroundings. This one is not. The excuse that this was a historically heavy industrial area no longer applies since the board approved residential here.

[02:29:19] The land bay lies within the transition policy area, which calls for less intensive uses to buffer neighborhoods from industrial activity, like the Luckstone and the existing substations behind Land Bay 3. A major utility substation is the exact opposite of what the zoning and plan intend for this location.

[02:29:39] The applicant will point to their revisions, but none of this changes the reality. Tier 4 generators are still located on the sides of the building facing our homes. GIS is still a major utility located on Cross Trail, adjacent to the WNOD Trail, and across from our residential neighborhood.

[02:29:58] the noise study only shows whether the project meets the bare minimum decibel threshold. Meeting a number doesn't erase the daily hum, the visual blight, or the psychological burden of living besides an industrial facility. The comprehensive plan requires compatibility, not minimum compliance. The board's role is to protect residents and uphold the plan you adopted. If a developer failed to fail to plan properly, that is their problem to fix. It's not the responsibility of Loudon families to carry the burden of their miscalculation. Approving this

[02:30:32] application would set a precedent that this county exists to serve developers first and residents second and that is not what you are elected to do. Thank you. Thank you ma'am. April Sullivan followed by and if I mispronounce your name I apologize. So Lindsay and Hannah followed by Michael Sullivan. Good evening. Good evening supervisors and madam chair. My name is April Sullivan. I live in Broad Run Farms and I just wanted to give you a quick my feelings on number nine for this evening. I grew up on five acres down the river a little bit in a wooded area where

[02:31:12] my kids played in the Potomac or where I played in the Potomac as a child. My husband grew up in Herndon in a similar situation and when we looked for a place to live we wanted somewhere that had no HOA, somewhere that had a sense of community, somewhere where we could find togetherness and neighbors helping neighbors, not somebody telling us what to do, what color to paint our house, whether or not to cut our grass, and things of that nature.

[02:31:39] Why I'm speaking is I would like you all to know how we feel, how I know a lot of the rest of the community feels as well from us directly, not through a forum. Supervisor Brisman did hold a meeting on August 26th where an electronic poll was sent out and a lot of us were able to say how we felt ahead of time. We thought this meeting was going to be more of a forum to speak how we feel and it became more of a "this is how zoning works" meeting.

[02:32:13] I took it upon myself before that meeting to also send a letter to the neighboring community of Potomac Farms. There's about 300 in Broad Run and another 100 houses in Potomac Farms. They were not aware of the meeting, and I sent out a letter and a bunch of people showed up because of it and were able to speak on behalf of their non-HOA neighborhood as well.

[02:32:37] I think that this particular proactive zoning enforcement infringes on our rights. It's an overreach. What we have right now is a complaint-driven, and as it is currently, it's working well. There's always a few bad apples in the bunch or neighbors that, you know, have outstanding issues that we work together as a community to resolve, just like we work together as a community to celebrate.

[02:33:02] We have picnics and scholarships and all kinds of great things. rides for Halloween so I just wanted to say that we're very much against proactive zoning enforcement and that is all. Thank you very much thank you very much Ms. Sullivan and again if I pronounce your name please correct me Ms.

Hannah and you'll be followed by Michael Sullivan who will be followed by Thomas David. Good evening. Good evening thank you my name is Felicia Hannah I'm also a resident of Broad Run Farms.

[02:33:40] I thank you all for giving us the opportunity. We are here to express our wish that you vote no on this item. Thank you to Supervisor Briskman for hearing us at that meeting and being responsive by proposing that this be dismissed from the docket.

[02:34:01] We weren't sure how that worked, and so we're here to make sure that were heard. And so you understand emotions run high for us on this topic. This literally hits home for us. In this area, finding a neighborhood that has this sense of community that is a non-HOA neighborhood is few and far between as far as options go. Broad Run Farms is a last bastion of that type of free living and we value it tremendously. People who live in our

[02:34:38] community move to there with intentionality to be in a non-HOA area. We value freedom, we value diversity, we value the small businesses in our community and so that is why Supervisor Briskman you received such an outraged response at our community meeting because the vast majority of our residents vehemently oppose this idea. We see it as an abhorrent overreach and we question the

[02:35:13] validity of the proposal to target only certain groups for enforcement. Enforcing the law only upon specific groups. I feel like we should all, in our history, want to be in a time where we're past that and know that that should not be the case. At our community meeting, the zoning enforcement personnel explained their entitlement to trespass and patrol on our properties.

[02:35:49] They promised to find at least one violation at every single property that they looked at. They are threatening us with fines. They are threatening us with liens upon our homes. In addition, they implied that the inspections could, in the future, expand to inside our homes.

[02:36:14] Ma'am, I'm sorry. Your time is up. It goes really quickly. I'm sorry. Your time is up. Let me wrap up then. No, ma'am, your time is up, actually. Thank you, though. I'm going to call the next person. I feel that this disenfranchises your own constituents. Your time is up.

[02:36:29] Thank you so much. i'm sorry if i if i let one person then i have to do it for everybody so i'm not trying to be disrespectful i just i stick to the clock pretty i stick to the clock period for everybody so just thank you michael sullivan followed by thomas david followed by mad who on teru i think i got good evening sir yep good evening everyone i'm mike sullivan i'm a resident of broad run farms and um i guess i'd like to start saying thank you to to supervisor brissman for coming out and hosting that meeting. I know it was a little, a little contentious. I think it's, you could

[02:37:08] kind of see when you're there that the vast majority of Broad Road residents are vehemently opposed to the, to the proactive zoning enforcement action item. There was a number of reasons. The, you know, some of the other speakers have already said, but it's like an overreach.

[02:37:27] Some folks felt singled out, but I think the one that really got under everyone's skin was kind of it's going to be acting like an HOA, and that's a kind of a defining attribute of our neighborhood is the lack of an HOA.

[02:37:44] So kind of enforcing that upon us really rubs a lot of us the wrong way, and we're very upset about it. And, you know, we're a lot like other neighborhoods, whether you have an HOA or not, we've got a, you know, a few people that are, that complain a lot, and we have a few people that are repeat offenders

as well. And that won't change with proactive enforcement. The complaint driven system, it's working when people have a problem. And if I had a problem that I couldn't, you know, do in a neighborly way, solve in a neighborly way, I would come out and say,

[02:38:28] you know, hey, call the complaint and put it in that way, you know, especially if there's like a health and safety issue, if it's a threat to the environment, we won't hesitate, you know, we use Broad Run, we use the Potomac River, if any of those are under threat by any of our own residents, we would certainly call and complain, and I think one of the issues, too, is that the complaint-driven system, as soon as the complaints launch to when it's resolved, there's a long period of time that's outside the control of the zoning folks.

[02:38:55] too so it goes into the courts and stuff so it takes a long time and so there's some frustration with the complaint driven system but I don't think the proactive system will do anything will be any faster it'll probably find some other stuff that you know we don't really care about because if we had a concern with it someone would complain especially our folks that complain all the time so you know and I know we mentioned or we came up in the last meeting that if um if if an issue affects one um supervisor's district i'm sorry your time is up

[02:39:27] okay i'm sorry all right thank you thomas david followed by um madhu on antiru followed by shirma syria kant good evening good evening let me ask the board and even the folks behind me A fairly thought-provoking question.

[02:39:52] Does a country, a town, or a county have a soul? From a historical perspective, the well-known philosopher Plato tackled this question in 375 B.C. in his best-known book, Known the Republic, and said yes. I agree with Plato, and therefore took some time to consider what makes up the soul of Loudoun County.

[02:40:15] I concluded there was two main factors. First, the people of the county, whether they're young or old, rich or poor, Democrat, Republican, they all bring true richness to the area. Second, I believe a county's soul is also reflected in its natural resources, such as its awesome rolling hills, beautiful streams, and green fields.

[02:40:37] With these two markers in mind, let me share a very short quote that Jesus made, which is recorded in several gospel accounts. He asked his disciples a question that is relevant in 2025 as it was 2,000 years ago.

[02:40:55] He said, for what profit is it to a man to gain the whole world and lose his soul? He was addressing the fact that people often place financial rewards and prestige above the matters of the heart. If we apply this lesson to Loudoun County in 2025, we have to ask ourselves, Have we placed financial rewards, tax revenue, the desire to have just one more data center ahead of the true soul of this county?

[02:41:25] You may want to ponder in your own heart for a minute or two before coming to a conclusion. If the board is being honest, there's at least two members up here who I believe have almost never voted against a data center, no matter where they're located.

[02:41:41] Nevertheless, I challenge you that when you go home tonight, ponder these truths, and maybe, maybe even pick up a Bible and flip it over to the book of Matthew, chapter 25, verse 26. It may change your mind on a few things, and it may even possibly change your vote.

[02:42:01] Thank you. Thank you, sir. Madhu Antiru, followed by Sharma Sarikanat. And again, please correct my name pronouncements.

[02:42:21] - You got it perfect. - Oh, thank you. - Thank you. Good evening, Supervisors. My name is Madhu, Madhu Ontiru. I think you got it pretty close. And if you please take a look at all the folks behind wearing red, these are my neighbors.

[02:42:36] And we are here. We are from the Tuscarora Crossing community. We are here to speak about the substation that's planned there. So first and foremost, thank you for the opportunity. And I want you to picture the families who live here, right? Kids playing soccer at Ballin Park, parents pushing strollers on the W&OD Trail, neighbors walking dogs along the Cross Trail Boulevard.

[02:42:58] That is the daily life in this community. Now, imagine all of it framed by the noise, fencing, and looming presence of a massive substation. This is not a hypothetical. This is what your vote today will decide. where the families and visitors see a welcoming neighborhood or an industrial facility at the gateway to a community. No wall or row of trees can erase what this does to the character of the area. It's incompatible with the homes, civic spaces, and parks you yourselves have approved.

[02:43:33] The general plan requires compatibility, and this is the opposite. We all know once something like this is built, it can't be undone. The impacts will last for decades. Families will live with constant reminder that the quality of life was sacrificed for a developer's convenience approving this sends a clear message that residents everyday lives their safety their health their peace of mind come second i urge you not to make that mistake protect our neighborhoods protect our parks and protect the livability of lordown county please please please vote no thank you

[02:44:11] Thank you, sir.

[02:44:28] Thank you. Sharma Surya Kant, followed by Isom Diab. Good evening. Hi, how are you? I'm well, thank you. My name is Sarvi. I live in Tuscarora Crossing, and I'm a top producing realtor in Nova, and I say that because I have a little bit of experience with all of these things going on. So I did research, and I read an article by the name of evaluation guidelines for properties with electric transmission lines done by the EPRI which is the Electric Power Research Institute. Homes around data centers and substations are considered ugly in quotes potentially hazardous to health and disruptive to lifestyle which again we all already

[02:45:05] knew. In their transmission lines and property value state of the science paragraph they concluded that some property values were being impacted by electrical transmission lines between 7 to 15 based on appraised values done by appraisers who were experienced to appraise properties near or around data centers and substations. They had another paragraph called impact study of the effect of high voltage power lines on rural property values and in that paragraph it states it can be stated with a high degree of certainty that there is a significant negative effect ranging from 10% to 30% of property value due to the presence of the high voltage electric

[02:45:45] transmission line the actual loss depends on factors of land use location of the power line and its size in this case it is directly in front of our community and in my professional opinion will negatively impact the values of our home i will give a real life example i am listing a home in our community for sale in the next two weeks and i post that on off-market realtor forums to let people know and after they looked at the maps based on the fact that the data center and substation will be within a certain range of the

home they have decided not to send it to their clients because they would not be interested i'm done thank you so much thank you so much i'm just

[02:46:19] taking some notes that you just said thank you just give me one second thank you so much ma'am um islam diab followed by brian patachi good evening sir good evening good to see you everyone again so i just want to speak a little bit about the substation we need to take into account the the argument that Emily made that in 2019 substations were by right at the time the applicant

[02:46:58] did not propose a substation in fact said one is not needed that and that alone is a misleading information that domino affected to where we are today and it's the county and the board that allowed this to happen and put us in the position where we are they should be bound by today's laws not 2019 laws and changes because nothing was materially proposed in fact quite the opposite dominion is required to provide power regardless so denying a substation doesn't stop the data center it only requires another method of service which dominion said they could provide just

[02:47:33] did not propose a timeline furthermore the last time we made public comments here we invited the chair and other members to come visit us in the neighborhood you were very adamant and vehement about visiting with the developer we almost had to convince you to meet with us we called we wrote and we were received with nothing i came out not a peep i came out meanwhile you've openly admitted to meeting with the developers several times multiple times it would seem clear that the board's loyalties and interests do not lie with us and all the red that you see it lies with a

[02:48:09] select few that are not even from here i'd also like to remind the board that the responsibility for creating this predicament is with the body that we sit in front of today it's seemingly the easiest and what's most beneficial for the board and its members and not for us and the community members with which you serve. You've ignored your staff remarks of opposing the substation. You've ignored us. You've ignored the greater calls of Loudoun community to stop the data center spread. I hate to say it and I feel like we know where your vote is going to go today and that

[02:48:46] is very very very sad. I have to remind you again the developer said they don't need one so don't give them one. Not at our cost. - Thank you. - Thank you, sir. Ryan Batachi, followed by Emily Johnson, followed by Owen Umung.

[02:49:07] Good evening. - Good evening, and thank you for the time. I, like many here, am in the Broad Run Farms community, and as others have already expressed, we are overwhelmingly and strongly against any proactive zoning enforcement.

[02:49:22] And there's not a whole lot more I have to say that hasn't already been said. I think you guys have done a lot of outreach, which we appreciate and while it was somewhat contentious, we just want to reiterate that we hope you will vote no on item nine and no on proactive zoning enforcement. Thank you.

[02:49:38] - Thank you, sir. Thank you. Emily Johnson has said she wants to speak on, 'cause which down is not an issue on the agenda, but she said that she did want to speak on an issue on the agenda. So I will allow her, she's my 14th speaker, to go on if you'd like to do that, ma'am.

[02:49:59] - I apologize, ma'am. You said something is not on the agenda. No, no, no. What you signed up to speak for was not on the agenda, which means I would not have called you yet. But then I got a note that said that you want to speak on something on item 8 that is on the agenda as well. Oh, sorry. Yeah, items 2,

6, and 8. Okay, wonderful. All right, good evening, supervisors. My name is Emily Johnson on behalf of the Piedmont Environmental Council.

[02:50:18] Tonight, you'll review two data center-related items, TLEC's recommendations on the Phase 2 standards project and an accessory substation. For data center standards, we support the TLEC recommendation that limits further encroachment into the transition policy area. Phase one provided more clarity on where data center development is expected, and now direction at the policy area level is appropriate.

[02:50:39] In the case of Tuscarora Land Bay 3, the existing impact on residents of a poor data center location is being made worse. The proposed substation would place industrial infrastructure 56 feet from the W&OD trail and across from homes. It is the board's job to determine if substation siting is appropriate, and a less intrusive site should be a priority.

[02:50:57] You can protect residents and shared spaces. If a data center could not reasonably ascertain their own accessory infrastructure at the time of their approval, it is not your obligation to approve it ad hoc now. Further, we reiterate that GIS substations use the most potent greenhouse gas, so impact should be resolved through siting instead.

[02:51:16] Lastly, when thinking about how we protect existing spaces and resources, we have follow-up comments on Greenfield Farm. While improved, its parcelization, a separation into an enclave, multiple applications and patchwork ownership remains a fundamental issue and a challenge for adequate proffer protections. Maintaining resource integrity and providing for thoughtful community becomes harder this way. Between this application and LEGIE 2025-0024 rezoning phase two, as well as anticipated future applications, we question the ability to assess the property's full needs and likely development given the fragmented information available. As an example, archaeological locus one is split between the two active county applications, which means we cannot ensure its

[02:51:55] protection now and all of the archaeological sites potentially of those enslaved or tenants are separated from the historic house and mill even as it is all one history on land currently under single ownership. This approach also affects community quality as phase two submissions show adding 233 homes to the HOA established in this application sharing interparcel connections and amenities for which they are not now being counted. A holistic review considering the entire farm is crucial for historical continuity, best preservation practices, and resident sense of place.

[02:52:29] If that's not possible, PEC supports proffers that clarify how ownership changes in Greenfield Farm and Orchard will affect resident open space, provide unit size maximums as a per lot cap, not average, update the historic house maintenance agreement to have on-site address at the end of five years, and provide either a larger buffer for Locust 3 or recovery excavation. Thank you.

[02:52:52] Thank you very much, Ms. Johnson. Owen Umung, you will be followed by Tia Ehrman, who will be followed by Ivy Nye. No, no, I'm sorry, I'm sorry, yes, followed by Tia Ehrman, followed by Theo Stamatis, followed by Ivy Nye. Good evening, sir.

[02:53:21] I come before you to speak out as a taxpayer, a citizen, a member of Tuscarora community, and most of all, as part of the voting public who entrusted you to represent us as a member of the Board of Supervisors.

[02:53:38] Without reservation, I totally oppose this project, and here's why. When is it to say enough is enough? Many years ago, this county approved construction of data centers. We all agree that these data centers infuse millions of dollars to the county and promotes development for IT professionals, etc.

[02:54:02] And I totally embraced this development. The overall development of Loudoun County has established itself as the richest county in this whole United States, and I totally embraced it. And we're all proud of that.

[02:54:19] However, we cannot forever build data centers. At this point, it must stop and must stop now. This has already been created detrimental effect in the county. Power fluctuations, higher cost of electricity, power outages. Any member of this body who votes to add more data centers, it's tantamount to serving a few individuals with deep pockets and totally ignoring us, the voting public.

[02:54:48] 59 seconds. Paradigm shift should take place now for a new development that will employ most of Loudoun County citizens. Landmark decision to strike down innovation data centers in Prince William County is delivering you guys strong message to everyone that we must move beyond this type of development.

[02:55:14] Let me ask you these questions. Are you willing to pay depreciation cost of our brand new homes triggered by these capricious data centers? Are you willing to stake your seat? if there are far power fluctuations rate increase power failures if you're willing you can sign an authorized covenant between us and members of the HOA I hope my time spent talking to this podium before you is not in vain my perception or attending speaking up the board of supervisors it's not a waste of time my colleagues in land development industry would always say the ship has sailed I came here before you to say start this is not departing from Liverpool this is a

[02:55:52] No-brainer to draw such conclusion. Thank you, sir. I did get the Liverpool reference. Tia Ehrman, you'll be followed by Theo Stamatis, followed by Ivy Nye. Are there any more people who signed up to speak?

[02:56:10] If so, would you bring those up to me right now, please, if you don't mind? Thank you. Good evening, Ms. Ehrman. Good evening. Good evening, Supervisors. My name is Tia Ehrman on behalf of the PEC, speaking on the Magnolia Rose Wedding Venue. Community members reached out to us with their concerns and as someone who actually drives Rickard Road all the time, I have to agree with the community.

[02:56:29] Rickard Road is utilized by the community as our unpaved roads are meant to be utilized with people walking dogs, groups of neighbors riding horses along the road. This is what we want to see in Western Loudoun. Even with the recent revisions to this application, an event venue of the scale and intensity will forever alter the fabric of this neighborhood and we feel it is just inappropriate on this secondary, narrow gravel road.

[02:56:54] This application is an excellent example of many of the issues being discussed in the Western Loudoun Standards and Use of SOAM right now. The reduction in number of attendees is nominal and does not have any real impact on the scale and intensity of this venue or the number of vehicles navigating record per event.

[02:57:11] The reduction in number of events per year is a significant change, but it's still nearly one event every week or with most events happening during the 18-week wedding season, June through

September, That's three events per week so the residents and farms of Rickard will lose the peace and tranquility of their neighborhood and the safe walkability of the road every Friday Saturday and Sunday all summer. We feel the applicant's proposal to stop outdoor music by 7 30 pm and outdoor activities by 8 is a smart concession to make and could have real impacts on noise pollution precluding ongoing problems with enforcement. We do not foresee this mitigating the issues of light pollution as parking lot and decorative lights will still be on. Historically the county's

[02:57:51] efforts to preserve rural Latin have focused on the goal of keeping agricultural and farming alive by giving farmers the opportunity to add complementary uses to avoid selling the farm. The reality on the ground as we see here is frequently new owners replacing working farms with tourism-based uses without an integrated conservation plan, conservation easement, or even consideration to the appropriateness of location, access, scale, and intensity of the new use.

[02:58:18] In this case, like so many others, the farm has already been sold. With Walrus, we must consider what can be built into zoning regulations to avoid poor outcomes, for this property, once developed in this way, reverting to farming at a later date becomes uneconomical, so today's decisions are pivotal for the entire life of this property.

[02:58:36] Thank you. Thank you. Mr. Darn it, Mr. Kerr, so just as Ms. Ehrman was speaking about this item, I did get a -- literally just now at 6:54 an email from the applicant.

[02:58:56] We had asked the applicant earlier to defer the item for some of the reasons that you had said, and we -- and I did not realize that we had heard back from them. And so they have said that they are fined to defer the item until the next week -- until the next -- I'm sorry -- to the next business meeting.

[02:59:17] So -- and Mr. Kirshner and I had discussed this as well, and what we were going to do was table the item until the next meeting, which we don't have to do if the applicant is going to defer the item. So supervisors, without objection, we are going to defer the item on Magnolia Rose to the next business meeting.

[02:59:39] Mr. Rogers has gone to -- I'm pretty sure I'm on fine legal footing right here, but I'll wait until Mr. Rogers comes back to answer that question. I don't think Mr. Stamatis is here, are you? Because they told Mr. Stamatis not to come because the issue was going to be deferred.

[02:59:55] So without objection, I'll say that if Mr. Rogers or Mr. Kirchner has something different, then I'll address that when they come back on the dais. But right now, Magnolia Rose will just be deferred to the next meeting for many of the reasons that Ms. Ehrman actually just articulated. Okay, Ivy Nye will be the next speaker, and then we will have James Russell, followed by Donna Wadowski.

[03:00:31] Good evening, sir. - Good evening, Chair, board. It's a pleasure to be here and have everybody paying attention and listening as you were the last time I was here a couple weeks ago, or I guess a month ago. My name is Ivy Nye, I'm a resident of Broad Run Farms. I grew up in Northern Virginia, born and raised.

[03:00:49] I have an Emmy, I saw a bunch of Emmys out there display. I worked for Alpha Corporation who did an awful lot of engineering work in this area. I was a mentor for Ashburn Dimalay for a number of years raising young boys in the area and I've done a lot of work. When I heard about the act of enforcement I was really interested in what it meant. I did a lot of research and spoke with members of my community which are all wearing the same color that's very rare. We have a very diverse community.

Broderin Farms is one of the oldest communities in Loudoun County which I find very interesting too. It used to be a big old farm

[03:01:27] and still is quite for some people. Active enforcement basically to me meant that we were going to start patrolling your neighborhood to see what's going on that we don't know about and to me that is extremely alarming. Not only because I there's nothing in in in what was addressed to proactively enforce locations of safety, welfare, and environmental protection that isn't already being done. The corner that I live on is at Derry and Fellows, and block I live on, there are four

[03:02:03] lots that are currently under construction. Around the corner from that block, the EPA has a Superfund site, which is actively under construction, actively being supervised. There are constantly cars and people and community members and whomever coming through this or this community constantly. Not alone there are planes and other air traffic that are constantly surveilling this industry or this community. Loudoun County is the most, it is one of the counties in the nation with the most amount of money. We know that because we're laying all these data centers in. I think it's

[03:02:43] absolutely ridiculous and silly that the county would think that we're going to put some police officers or officers on the street or zoning or whatever that is to try and fix whatever that problem is that isn't even identified. So those are my words. Thank you. Thank you sir. Did you hear my comments from the back? Did you realize that?

[03:03:03] Just give me one second Mr. Russell. While Ms. Ehrman was speaking, we got an email from the applicant from Magnolia and no, we're okay deferring it. It will be deferred. Oh, that's who sent me the email. No, Mr. Wells. Okay. I'm sorry about that, Mr. Russell. You would be next and Mr. Russell, you're going to be followed

[03:03:36] by um uh donald wadowski and she will be you will be followed by um michelle lane smithwick good evening mr russell good evening uh i have been coming here for a year and a half trying to articulate uh the anguish and anxieties of our palestinian american neighbors in loudon county in particular and over that year and a half uh many of these meetings uh of just like tonight

[03:04:13] There have been discussions about data centers, and there have been discussions about substations and other pieces of infrastructure designed to meet the exponentially increasing demand from those data centers.

[03:04:30] And I applaud the people who came here tonight to object to these expansions. People phrased some things quite brilliantly. One gentleman said he does not want this county to sacrifice its people or constituents.

[03:04:48] One woman said this county should not serve developers first. One man brilliantly asked, does this place have a soul? I want these people to know, and I want Loudoun County's residents to know.

[03:05:06] The only reason these data centers are being built is because they are a strategic asset, because our government has determined that they are a strategic military asset. The companies that occupy these servers and these data centers contract with the government, contract with the military, as well as militaries all around the world.

[03:05:24] They contract with Israel while Israel is committing a genocide, which the United Nations just decided today. They just defined Israeli military action as a genocide, the actions in Gaza. And I want these

people to know, these people here, you're right to come up here and object to it.

[03:05:44] But I have to warn you, nothing is going to stop the construction of these data centers. We answer to these corporations. We answer to an increasingly fascistic federal government. They will build these data centers. Nothing will stop them. Nothing will stop them.

[03:06:02] They do not care about you. And if that sounds melodramatic, I implore you, find Palestinian American neighbors and ask them, ask them about airstrikes in Gaza targeted with data from these corporations.

[03:06:20] Our next speaker will be Donna Wadowski. Ms. Wadowski, you will be followed by Michelle Lane Smith-Wick, who will be followed by, on the phone, Sarah Hussain-Bazaar. Good evening, Ms. Wadowski.

[03:06:37] Good evening. Supervisor Kirshner, you are absolutely correct with your board comments that a gun does not shoot itself. It is not the gun, but the person behind the gun. A gun is the most regulated consumer product in the United States.

[03:06:57] Supervisor Briskman's repetitive, reckless comments are a disgusting display of ignorance and are especially unconscionable coming from an elected official, from someone who should know better. Supervisor Briskman has condoned the assassination of Charlie Kirk on social media sites by excusing Matthew Dowd of MSNBC comments, who was fired by the station.

[03:07:28] Death by gun is okay, in Supervisor Briskman's eyes, as long as it involves someone she doesn't agree with. At an indivisible event, she was seen holding up a sign that read, F. Donald Trump. Supervisor Briskman also went after her Republican board members by refusing to sign her gun violence resolution by saying they all should be fired.

[03:07:56] On a taped message, she has used foul language and inflammatory rhetoric to go after Sheriff Chapman. Sheriff Chapman is widely praised by the citizens for keeping Loudoun County the safest county and has received numerous citizen and professional accolades.

[03:08:16] After the October 7th savage attacks on Israel's citizens, Supervisor Briskman's inflammatory rhetoric caused a citizen who said she had voted for her to now ask for her resignation.

[03:08:34] Chair Randall, free speech is a beautiful thing, but we have to be careful it doesn't cross the line into hatred and provocation. All it would take is a person who is a ticking time bomb to hear Supervisor Briskman's inflammatory rhetoric to become incentivized and cross the line into political violence.

[03:08:57] Chair Randall, that would not be good for the county. Thank you. thank you miss wadowski so we don't normally comment on a person's public comments however i do think that there are times when public comments themselves can put the board at greater risk and so miss briggsman have you at any time condoned the murder of charlie kirk absolutely not madam chair thank you we're going to go to the next speaker which who is michelle lane smithwick

[03:09:30] and that will be followed by um sarah hussein bizarre followed by vanna milka good evening ma'am good evening how are you all i am well thank you thank you for allowing me to speak my name is michelle lane smithwick i own a home health care company which i started in 1998 and it grew

[03:10:00] organically and what i am going to say i i have good reason to say it and i will give reasons why i'm going to say it real facts and i knew that some people may use the word like fascist and nazi But because of me owning the company and the legal requirements that we have, I need to point this out to you all, and I've reported it to the Board of Nursing in Virginia, to the governor's office.

[03:10:37] But I want to say that I am part Jewish, so if people try to use that term, it cannot apply to me and what my points are. I went to see a new patient who was a pediatric patient two weeks ago.

[03:10:56] And the mom told me, she resides in Ashburn, that she was almost sexually assaulted while walking her disabled child. That he followed her home and that she felt very scared because there were a lot of people that she didn't recognize in her development.

[03:11:20] and that comes on the heels of I had been vetting people trying to hire new staff who were good we try to get the best staff and I pay above scale to retain them and a woman appeared to be a perfect candidate she claimed to be a CNA she was eager to work when I started to vet her I realized that she was not a CNA because we can look that up I then started looking at the place

[03:11:58] where she claimed to have gotten her her education to be able to sit for the CNN license and the the person who signed her certificate of completion was even as of today when I looked it up today is not a registered nurse anywhere in the United States as of today there's a there's a national database called nurses and she was not there I am really sorry because I actually want to know what I want to know what's happened but but you're out of time if you have written comments you can certainly submit submit them our

[03:12:37] attorney said because it said I probably shouldn't put it out there but I just I just want to say that I really am asking you all, these people are coming across the border and handed social security numbers and entering the health care system.

[03:12:53] Your time is up. People, I really, if I let one person do it, this is the rules of the board, not my rules. We just, we have a time and I have to stick to it. So I'm sorry, but I have to stick to the time. Excuse me.

[03:13:09] On the phone would be the next three speakers. on the phone is in this order. Sarah Hussein Bazar, followed by Vanna Milka, followed by Maya Smith. Hi. Before I begin my speech, I extend my deepest condolences to the family of firefighter Danny Wilson. May you find strength and comfort in this time of sorrow.

[03:13:35] Good evening, board members. Good evening to the Zionists. Today, the world bears witness to undeniable crimes against humanity. Recent estimates show that over 680,000 Palestinians have been killed in Gaza with more than 380,000 of them children under five. Families fleeing south following evacuation orders from the Israeli regime were bombed in their cars, proof they are no true safe zones. Just today, the United Nations declared that Israel is committing genocide in

[03:14:11] Gaza. The commission found four genocidal acts, mass killings, deliberate infliction of serious bodily and mental harm, conditions of life calculated to bring about destruction, and measures intended to prevent birth. These are the legal definitions of genocide. Imagine apartheid South Africa, imagine the Holocaust, the Armenian genocide, and the genocide in Bosnia. Each of these atrocities was carried out, not only through violence, but through the silence and

[03:14:46] complicity of the global community. The UN has affirmed that all states have an immediate legal duty under the Genocide Convention to employ all means available to prevent and punish genocide. Failure to act carries both legal and moral consequences. So I must ask you directly, Do any of you hold stocks or county investments in companies aligned with this genocide?

[03:15:14] And if so, will you divest? As Americans, we are bound by international law. As a county, we must take responsibility. That means cutting ties and divesting from companies complicit in the genocide in Gaza. Companies profiting from weapons, surveillance, and infrastructure used to carry out these atrocities.

[03:15:36] silence makes you complicit neutrality in the face of genocide is fighting with the oppressor history will not forgive a hesitation it will remember exactly where you stood free palestine thank you miss bazar um vanna milka followed by maya smith followed by xenia miss hutchinson vanna milka is on the phone hello um it is a horrendous evening to us all uh it is day 710 of our board, our county, and our state, and our country's complicity

[03:16:15] in enabling and funding the ongoing genocide that Israel is committing in Gaza. On day 710, and over a year of us calling on the board to take a stance, symbolic as it may be, to voice our county's rejection to being accessories to war crimes, today the United Nations confirmed that Israel is carrying out genocide in Gaza.

[03:16:35] I would like to quote to you here how today's UN Commission is a local matter in Loudoun. I quote, urging the Virginia retirement system that Loudoun County employees are part of to divest from

[03:17:13] corporations, particularly weapons and tech companies that are supplying Israel with arms financed by our tax dollars and Loudoun-based technologies that precision hits civilian targets including schools and shelters and tents and hospitals, hospitals that used to treat pediatric cancer but no longer because they have been repeatedly bombed. Symbolically, we have been asking the Board of Supervisors since last year to take a stance by simply declaring ceasefire resolution. I find it baffling that not only did Chair Randall categorically reject that there would be, back then or any time, a ceasefire resolution or mere declaration of our county's

[03:17:49] stance against genocide or apartheid. But the hypocrisy expressed that board members would speak against apartheid in South Africa but not against apartheid or genocide in Palestine is alarming to me as your constituent, especially one that has consistently voted to you board members sitting up there on the dais. This hypocrisy is duly noted because I'd like to remind you that the United Nations called for sanctions and divestment against apartheid South Africa in 1962, but it wasn't until 20 years later in 1986 that the U.S. finally passed the comprehensive anti-apartheid act. How long is it going to take you, today's politicians, to take a stance? Don't be those

[03:18:27] politicians who stand on the despicable side of history. Free Palestine, stop data center development and genocide now thank you thank you ma'am maya smith will be followed by xenia hutchinson followed by robert griffin maya spence on the phone city board members hope you had a go to recess and all of that concession um just remember how valuable it is to have shelter over

[03:19:03] your head and not be moving tent to tent the united states nations reports states some children including toddlers were shot in the head by snipers but that's thinking this is not rumor not speculation this is documented atrocity it has taken 710 days into the genocide for the un to finally declare what we

already knew israel is committing genocide in gaza the un has now called on nations to stop sending weapons to israel to ensure people under their jurisdiction are not aiding or inciting this genocide and to hold those responsible to account

[03:19:43] so i asked this board are you free from accusations or allegations that county funds or your own investments are tied to weapons manufacturers surveillance tech or corporations that profit from this genocide would this board have been silent in the face of the holocaust silent under apartheid south africa silent during genocides in rhonda bosnia armenia silence then would have been unforgivable.

[03:20:11] Silence now is complicity. Now that the UN has declared Israel's committing genocide, the question is no longer if you know. The question is, what will you do? How will you stand up? Will you divest? History is watching. The world is watching.

[03:20:28] And future generations will remember where you stood, on the side of justice or on the side of genocide. Thank you kindly. And once again, body, nuclear, violence. Good evening. Thank you, ma'am.

[03:20:46] Zena Hutchison, followed by Robert Griffin, followed by Tiffany Pellante, I think. Good evening. Good evening. 77 years, day 710 of the genocide.

[03:21:04] Both your parties work for Israel. The difference between Winsome Sears and Spanberger couldn't be more obvious, except for their work on Israel. Our senators, Tim Kaine and Mark Warner, compromised hundreds of thousands of dollars from the Israeli lobby.

[03:21:20] Democrats, your leadership like Biden, who said he is a proud Zionist and led on genocide for a year and a half. Nancy Pelosi, who said even if the capital crumbles, she will protect or support Israel. Our own congressman, Suha Subramaniam, went on an all-paid AIPAC trip to Israel, endorsed by AIPAC and DMFI.

[03:21:40] But not to be out-Israiled. The Republicans and racist fascist MAGAs who go to Congress in Israeli military uniform and deny the existence of Palestinians, your constituents are disgustingly compromised as well. At the request of the Israeli regime, legislation is being passed at the federal and state level in various parts of the U.S., legislation that infringes on the Constitution by criminalizing free speech like boycotts, which are a fundamental part of American history, like the Montgomery bus boycott and others, and making states and companies take a loyalty oath to the foreign entity, Israel.

[03:22:18] The federal level too distant? How about the Virginia Israel Advisory Board? If pointing out your complicity in your inaction in genocide isn't a catalyst enough to outrage you for the inhumanity of it all, then maybe the presence of an Israeli state agency within our legislature that is not accountable or transparent and gets funding from your taxes might.

[03:22:41] Bringing in military and cybersecurity companies that spy, censor and kill in Palestine or elsewhere, many connected to your precious data centers here. Look up Project Nimbus, everyone. Ask yourselves why the Virginia Secretary of Education has to serve on the board of the Virginia Israel Advisory Board, the Secretary of Education.

[03:23:03] Your Virginia retirement systems, the VRS, you all are invested in it, or many of you are, also contributes directly to the genocide in Palestine. Instead of being angry and frustrated with us, instead of using your elected seats as an excuse and as a line of defense for a foreign entity, be angry at outrage that Israel has infiltrated our own spaces here in Virginia.

[03:23:26] So let me be clear, we are not asking you to feel sorry for us, we are asking you to wake up, stand up to Israel and its proxies and demand an end to a genocide, divest from Israel before it's too late for all of us. Our next speaker will be Robert Griffin, followed by Tiffany Plante, and I will say this before the two final speakers come.

[03:23:49] Before we take a break, we're going to go on and do the Broad Run Farms item, because it's going to be, I think, not a very long time. We can get that done. We actually haven't had a break yet. We went to closed session, but you can't legally take a break when you're in closed session. So after the Broad Run Farms item, we're going to take a break and then come after break, come back and pick up the Tuscarora item right after our break.

[03:24:12] Okay, Mr. Griffin, good evening. Yeah, good evening. I know the Democrats to be the party of exploitation from top down, Biden, all of them. They're the ones that allowed that war to begin in Gaza and Iran.

[03:24:31] Yep, it's Biden, the Democrats. they're all exploiting you and you testify you should listen carefully to them because they just pretend to listen but they don't really know they don't they just pretend and we saw a tragedy in Utah with the assassination because they exploit transgender or young people that are mixed up in their who they are and what they are yeah kids babies and that's what's going on in our Loudoun

[03:25:10] school board, which these Democrats support wholeheartedly. I never saw you ask Mr. Turner to apologize to me because of his obscene activity as a board supervisor. And he exploited you, my chair, Randall. Yeah, he invoked you as being one of the reasons for his trying to prevent my speech. Yeah, you do. You all call yourself Democrats. You're part of the problem. You run

[03:25:46] on that recognition you think you're you're being kind and good but you're exploiting everyone in this room people that are opposed to your data centers nope the party of exploitation is the Democrats so chair Randall will you ask and tell Mr. Warner who is not or Turner to apologize and if you want to see my complaint you can request a freedom of information because I left a copy last time I was here. All you have to do is contact your chairperson, and they'll give you a copy

[03:26:23] of anything you want. That I, my complaint, my ethics complaint, because you're just so corrupt, exploit. The whole Democrat Party is the party of exploitation. And as results in death, you call Trump a Nazi and a fascist. And there's our Senator Kaine, who says our rights come from him, not God you're just a tragic Mr. Griffin your time is up thank you sir our last speaker and then we'll take the Broad Run Farms Mr. Griffin your time is up sir our Broad Run Farms item

[03:26:59] after the last speaker good evening ma'am good evening madam chair and members of the board my name is Tiffany Plant and I have had the pleasure happiness and joy of living in Broad Run Farms for over 20 years. What makes this neighborhood so special is not only the homes, but the relationships amongst our neighbors. The sense of trust, the sense of safety, and the true community that we have built together. Broad Run Farms already works well as it is, safe and connected where people know and look out for one another. I am here to respectfully ask

[03:27:39] that you vote no on proactive zoning in our community. Proactive zoning threatens the character and the quality of life that has made Broad Run Farms such a wonderful place to live for decades. On behalf of my neighbors, I urge you to protect our property and our community rights and

please preserve the character of Broad Run Farms by rejecting proactive zoning. For many years, Broad Run Farms has thrived because of its people and its design. Please don't let proactive zoning undo that. Thank you. Thank you very much as well. Okay, as promised, we're going to do the

[03:28:16] Brockman Farms item right now. So if there is staff here who needs to come to the table, could you please do that? This is actually item number nine. Staff, is there anything new that you want to tell us that we didn't have before we haven't discussed already? No, ma'am. There's nothing to add to the staff report. If you have any questions, we'd be happy to address those.

[03:28:52] Okay. Supervisors, let's ask questions within a motion. If we have questions, I will go to Ms. Bricksman for a motion. Thank you, Madam Chair. I move that the Board of supervisors direct staff to discontinue efforts to initiate enhanced proactive zoning enforcement within the Algonquian Election District. Second. Motion is made and seconded by Supervisor.

[03:29:13] Well, Supervisor Bricksman made the motion. Chair Ronald second the motion. Supervisor Bricksman. Thank you, Madam Chair. I sent an email to probably more than 100 folks that had come to the Broadland Farms community meeting and filled out our online form and expressed that I would be making this motion tonight. I also had it in my newsletter. But colleagues, I just wanted to make sure you understand that this was a follow-up item from staff from a January 23 business meeting

[03:29:47] where I had expressed in a straw poll an interest in learning about proactive zoning. It came back to the board, I guess in June, and it was deferred till now so that I could have a community meeting, which happened, as you heard, on October 26th. I was joined by three staff members from the Department of Planning and Zoning who gave a great overview of zoning enforcement, answered a lot of questions. Dozens of residents attended, and as I said, more than 100 folks either wrote

[03:30:19] an email to me, maybe to the full board, and or and or filled out the online form that we had created. And I want to thank those who came to speak tonight. I'm sorry you felt like you had to come and speak, although you're always welcome to come and speak. I thought I had made clear that this that I didn't see any reason to do proactive zoning in Algonquian district. And I didn't think any of my colleagues would see any pressing need to go against that intention. I was undecided before the community meeting, but after all of the research and the conversations and everything

[03:30:58] at the community meeting, I came to the conclusion that it wasn't needed. In particular, the Broad Run Farms community has long maintained a strong culture of independence and practice of resolving matters neighbor to neighbor on the neighbor to neighbor level. I believe that introducing proactive zoning enforcement could threaten that sense of community and freedom from regulation that many residents value. So colleagues, I do ask for your support in directing staff to discontinue efforts on this. I will say I want to acknowledge folks in the community who actually were supportive of proactive zoning enforcement, and I hope that those who came to the meeting

[03:31:37] understand that while there is no HOA in Broad Run Farms and a couple other places in my district that um that the residents are still subject to zoning regulations and especially to floodplain restrictions and i hope that the meetings serve to clarify what those restrictions are in your particular zoning district thank you madam chair thank you mr turner do you have anything actually mr turner mr sanes do you have anything no ma'am okay mr turner do you have anything. No, ma'am. Mr. Kirshner. Yeah, thank you, Madam Chair. Just a couple

[03:32:14] questions of staff and a few comments. I think the item mentioned that the board may elect staff to conduct enhancement proactive enforcement in other areas. Is that still on the table or was this the last area that was up for discussion? Supervisor Kirshner, we with our last item July 15th, we asked to for more staff resources just to get us up to speed so we can handle the complaints that we have it's my understanding from the proactive aspect you these resources would have been used for a proactive or any other proactive initiatives but we

[03:32:53] won't really have a good handle on how many additional staff members this will take until that happens if it does happen and I know you have some interest in some situations you would like potentially weakened? Yeah. Yeah. So I guess I differ, and the reason I ask that is because I feel like a lot of the citizens spoke tonight about the difference between being proactive and being reactive.

[03:33:18] And I think, generally speaking, I think the aspect of being proactive is kind of a lot of government intrusion. I mean, I think that's the biggest thing I'm concerned about, and I'm glad Supervisor Briskman has chosen not to proceed on this, that the citizens spoke on this, because I I think as citizens, we're kind of like, if big government's always looking over our shoulder for something we might do or not do, I mean, that's why people move out of HOAs in part.

[03:33:40] But if there's obviously a complaint and it's a violation of zoning law, then I think you do need the resources to follow up on that. And that's the differentiation that I would see in a situation like this. And so that's, at least that would be my desire. I know that's not what we're voting on tonight. But, you know, obviously the resources to follow up, for example, the noise complaint on weekends or whatever that may be, we spoke about that.

[03:33:59] But being proactive, I think, is a little bit more too big brotherish in my mind. And I think that's a lot of what the citizens are reacting to. And I think I'm very glad that we are headed in the direction that we're headed on this. So thank you. That was just my questions. So God help anybody in broad, informed, who does have major zoning violations.

[03:34:19] I don't think, I think that you all are going to handle that just fine, to be quite honest. I do want to say that I think I'm a little surprised, although in a good way, I guess, by the response from Robin Barnes, because what often happens is when a supervisor is asking for more information, the assumption is we're going to do something, versus we don't know what we don't know, and we don't know it until we ask for more information.

[03:34:47] And I took Ms. Bricksman's discussion of, let me get more information, because she had got some complaints. Never one time, and she and I talk all the time, did she say to me she was going to do this. In fact, pretty early on, she said she thought she wasn't, but she wanted more information.

[03:35:03] I think that we, both the supervisors and the county, have to do better and clearer communication so that it's more clear that we're asking a question, we're not making a decision. And, you know, because it is, although we always want to hear citizens' feedback, we absolutely do, It's, you know, you all got lives, you got children, you got, you know, you got jobs, you got dinner cooking, you got, you know, whatever.

[03:35:30] You got farms, which, yay, you got farms. And so it's a lot to take the time to organize, to come to a meeting, to come here, to come to a meeting. It's a lot to do that when more often than not we're just trying to get information.

[03:35:46] And so we will do a better job saying that this is an information item just so we know, not because we're trying to step into anything one way or the other. I think the lesson here for me was not so much about practice zoning or not practice zoning, but more about let people know what we're doing as clear as possible so that they're not, you know, I mean, you all got shirts made up, for God's sakes, right?

[03:36:12] So they don't have to feel like they have to do that when really we're just trying to figure out what is going on and what's not going on. And so I really, I have learned, even though I wouldn't support this and I don't think it was ever going to happen, I have learned a lot from the process of how to not let this happen again with just not offering as much content and information around an item if we're just trying to get more information.

[03:36:42] So if nothing else, I appreciate that because it's a lesson for all of us to have up here. So thank you for coming in. And I think I have been over the broad run front many times. I think no one's going to have a zoning violation that we're going to hear about because I think you all are going to take care of it just fine all by yourselves.

[03:36:59] Ms. Bixman, do you have a closing? I do. Thank you, Madam Chair. Just a couple points of clarification. Staff did say at the last meeting that we had where this was on the agenda that each district supervisor may request proactive zoning in their district.

[03:37:15] So it's not something that would really ever happen countywide, nor would it happen unless a district supervisor specifically went and asked staff for it. Also, just a little bit of a dovetail on Supervisor Kirshner's comments, and I had a conversation with staff about this.

[03:37:31] The item was a little bit confusing because we were talking about the property maintenance code in the same item under which staff believes they need more resources. And it did sort of imply that we were going to hire like six more people for proactive zoning just in Broadbent Farms, which was absolutely not the case.

[03:37:49] But we also heard during the community meeting that sometimes when there is a complaint, the process takes too long. And there may be some ways that we can be more responsive when there is a complaint, maybe some ways, especially with more resources coming into the department, that we can hopefully take care of things a little bit, a little bit faster. Again, thank you so much. Thank you so much for working with me, Broad Run Farms. Thank you so much for all of your engagement on this. I really appreciate it. And yes, I have learned a lot as well. I always say that I love this job because there's never a dull moment. There's never hardly a day

[03:38:27] that goes by where I don't learn something new. So again, thank you. And thank you, colleagues, supporting the motion motion was made by supervisor brixman i second the motion on people say aye any any opposed i think mr change you're an eye correct yes ma'am okay any opposed that motion will pass 9-0 thank you all very much thank you everybody supervisors we need to take a break um um and maybe go eat something uh when we come back we will we've done everything i think except for item number 2A and item number 6.

[03:39:06] That's all I see that's left. Is that correct? I'm sorry? Oh, Greenfield. Okay. Okay. We have three items left, three big items, in fact, that are left. Okay. But we're going to do the Tuscarora after break.

[03:39:22] So let's take 15 minutes, everybody. Thank you.

[04:02:19] Mr. Turner, Mr. Sains, can you hear me?

[04:12:11] Yes, Madam Chair, I can hear you. Mr. Turner. I'm on. Okay, wonderful.

[04:12:22] Okay, we are going to, I'm calling it back to order, we are going to do item 2A, I'm sorry, my bad, item 6, item 6, I, oh, and we do have item 8 still, okay, we're going to do item 6, staff, you have a presentation that's different than your last, any new information?

[04:12:54] No, Madam Chair, there's not updates to the item. Okay, this is in the Leesburg District, Ms. Armstead, do you need the presentation? I actually would like the presentation. We've got a lot of folks in the audience who are interested in the issue.

[04:13:13] Sure. Let's do the presentation. Okay. This is Tuscarora crossing Land Bay 3. The site is outlined in yellow. This is south of Cross Trail Boulevard and adjacent to the WOD Trail. I apologize for the sensitivity on the mouse tonight.

[04:13:29] So this is a zoning map to identify the various districts that are zoned in the area. Two requests. In July, the board voted on the commission permit. This is the accompanying special exception, minor special exception, special exception to establish the utility or the substation on the site.

[04:13:49] And then there's an internal buffer between the substation and the data center campus that they're asking to eliminate and replace with fencing. This is the overall parcel. You'll see the special exception areas outlined in yellow. The three buildings in TAN are the buildings identified as data centers on an approved site plan for the property.

[04:14:12] And to the south is the associated stormwater pond. I'm sorry, everybody, technical difficulties here. We mentioned previously two prior applications that established both Tuscarora Crossing and established data center use on the subject property.

[04:14:36] Originally, a set of residential commercial industrial uses in 2012. In 2019, there was a request to convert some approved retail to residential units, allow data center development on the property at a higher FAR, and relocated areas of civic use across the entirety of Tuscarora Crossing.

[04:14:55] This is the overall concept plan for Tuscarora, and you'll see at the lower part of the screen outlined in yellow is the subject property. You'll see residential land bays and a civic use site or public use site in this general area.

[04:15:11] You can see my mouse. And then you see the other residential land bays to the north. And then along here, you can see my mouse, I apologize. That is the other general industrial land bay.

[04:15:28] You have a single family to the north, you have a planned civic use in this general area. Land bay one, the majority of land bay one is residential and that's the affordable housing project that was previously approved. Land bay seven, up to next villages of Leesburg, That is a mix of housing and also IP uses.

[04:15:49] And on the south side of Crosstrail Boulevard, Land Bay 5, is also a zoned GI General Industrial. And this is all the entirety of the project. Landscape buffering, there's a number of efforts by the Albuquerque to try to enhance the screening of this facility.

[04:16:08] And one of the updates in the item was that they're conditioning themselves to a gas-insulated substation, which has a lot of these mechanical equipment of the substation within containers. But they

are providing a four-foot berm and 12-foot wall along Crosstrail Boulevard.

[04:16:26] That landscaping will extend along Crosstrail as part of the site plan for data center development. They're enhancing evergreen screening and also providing a 12-foot wall along the WNOD. There's some conservation areas to the southern part of your screen, and then some additional landscaping along the southern part of the property.

[04:16:49] Conditions of approval in your packet speak to the screening walls I've described, the landscaping I've just described, some supplemental plantings in the conservation areas. They also have conditioned or agreed to conditions regarding noise studies for the facility, both pre-construction and post-construction.

[04:17:06] And we did talk, this is incorrect. It's not a substation option. They are actually committing to a GIS substation. Also during the public hearing, there were some questions about use of gas turbines associated with the data center campus and also use of tier four generators.

[04:17:25] They had agreed to a restrictive covenant on the data center campus that would prohibit the use of gas turbines on the property and require use of tier four generators. - Can you say why that's significant or not significant that would be tier four generators?

[04:17:42] Can you speak to why that's so significant? - It's a high level technology that has baffling that reduces sound, also reduces the amount of exhaust comes off those sorts of facilities, but it is a technology that's used to to lessen the impact of the generators. Commission in May had recommended denial of the application, but with the recent amendments we have determined that it is consistent with the place type as described in the plan with the conditions that have been recommended and we are here to answer your questions.

[04:18:17] All right, thank you. Ms. Umstead, this is your district. I will go to you first. Thank you, Madam Chair.

[04:18:33] One of the concerns that the community has raised is that if this were going forward, they would prefer to see the substation on the, I think it would be the eastern side of the site. That's where you indicated, I think, there's a stormwater management system?

[04:18:51] Yes, ma'am. All right. Where, if a substation went there on the east side of the site, what would be required for storm management, stormwater management?

[04:19:08] I imagine if the substation was atop what's planned now, they would have to probably do some sort of underground technology. There's also slope, the high point of the project of Long Cross Trail. it slopes down to the creek so there would have to be some engineering done to move water around into some sort of above ground or underground detention facility that would have to be at the applicant's election of where they put that. Do you believe that if that is where the substation were to be moved to would that impact the orientation of the already approved data center

[04:19:48] buildings is right now the long side of those buildings are not facing the community correct there would be potential there would be potential that they would have to reorient the buildings on the site to accommodate that new location whether it would be moving it parallel or remaining perpendicular that would have to be at their you know their election okay thank you mr sains do you have any questions uh yes madam chair thank you uh staff thank you for the update um you

[04:20:23] mentioned the the tier four generators uh briefing your comments um just out of curiosity have you ever heard uh t tier four generators in operation personally no sir i have not okay all right and so you don't know the sound difference between the four or three personally since you never heard it no sir this is this was something that had been at a board request and so i i do not have personal

[04:20:55] experience with tier four generators. Gotcha. Okay. Do we, does staff know if the residents in Tuscarora Crossing are close proximity to this location? Do they, when they purchase their homes, do the staff know if they ever received a notification that a data center might be in close proximity to their homes when they purchase their homes in this location?

[04:21:23] I do not recall a proffer that would have required notice to the purchasers of those homes about the the data center campus okay all right and do we know if the proposed substation would that only power these three buildings proposed buildings in this illustration here or would this whether the substation also possibly power other data centers in close proximity it would be a shared substation would have you know would it is required to power this

[04:22:00] campus, but whether or not it would have capacity to put back on the grid, I believe there's some discussion by Dominion that that could be used in that capacity to do both. Okay. Gotcha. Okay. All right. Thank you. Thank you. Mr.

[04:22:17] Letourneau. Thank you. Marshawn, I've been having some discussions about with the applicant about the overall campus, because to me it's pretty clear that the real visual impact is from the data center. So can you show, I understand that there's an updated architectural rendering landscape elevation that shows what the overall

[04:22:37] campus looks like. Do you have that that you could show us? Yes sir. So this is the view from the Tuscarora residential neighborhood. This road that you see right here is Tuscarora Crossing Drive and that is the simulation of the data center campus that the applicant is putting forward as

[04:23:15] part of their site plan. So the application that was approved 2019 and then in 2015 I think it was approved for about almost a million square feet of industrial uses and then that was upped in 2019 to like 1.4 million. Yes sir. But this is showing under 700,000 square feet. I believe so. I'm sorry I don't have the specific numbers but it's less than something that was approved. It's less than what was actually approved by a considerable amount, and the applicant does not have to do that. That would be, they have the ability to bill what was approved.

[04:23:53] Yes, sir. And there are some design guidelines that were required as part of that rezoning, and is somewhat reflected in these designs here. Okay. Thank you. Mr. Kirschner. Thank you, Madam Chair. Thank you for presenting. I have, the big question I have is, and I just want to hear what staff has, the condition of approval for the GIS substation option.

[04:24:20] My understanding is that that will generally be considered a smaller footprint. Is that correct? Yes, sir. How much smaller are we talking about in terms of height, base size, et cetera? Because I think that's a fairly big concession. I'm sure it's far more expensive, but I would kind of like to know what that...

[04:24:39] So the buildings themselves, the GI substation, about 35 feet in height. And I'm sorry, I'm going to go to the, see if it'll show up on the screen here. If you can see underneath, this may be an older plat, but the yellow outline is the footprint within it.

[04:24:57] And this is the former outline where you see a lot of the open air generators. So there's two parts. Remember, there's the backbone, right? The backbone that comes off the power line. That's hard to disguise. Once it gets down to the equipment yard for the GIS, majority of it are buildings that are about 35 feet in height versus this outline of equipment, which can be higher than 35 feet.

[04:25:18] And how tall are the data centers here right now? 60 to 70 feet. Yeah, so it's half the size. Okay. And smaller now that it's GIS, presumably.

[04:25:34] Yes, sir. Okay. All right. Thank you. Mr. Crony. Thank you, and thanks, Marchant. So they still need the H-frames, right, for the substation, the H-frames, the utility poles.

[04:25:52] Yes, I was calling on the backbone, but yes, the utility. The backbone. So those can be 60 to 70 feet. Yes, ma'am. Okay. are at the rear of the right but they're still visually impactful because they're tall okay um and what is the distance from the data center to residential is it 345 feet there are several different distances board there's there's gremlins in the in the computer tonight i'm not sure why it keeps going away but the nearest residential uh from the corner the southern corner of the

[04:26:29] substation the nearest residence within Tuscarora Crossing across the street it's 805 feet Kincaid Forest is about 1200 feet and then unbuilt residential units on the other side of cross trail is about 768 feet. Okay and what's the distance from the substation to the W and OD?

[04:26:55] 25 30 feet. Yeah it's really cool. Okay and do you know if you mentioned there might be some capacity with the substation? Do you know if the plan is to power the two data centers on land bay seven across cross-trail?

[04:27:14] I would not be able to confirm that. I do know there's some dual capacity that this substation would serve. There's excess capacity. Okay, thank you, Marshawn. Ms. Brooksman. Thank you, Madam Chair. Does staff have any idea what might happen to the data centers if we deny the application for the substation?

[04:27:35] Bless you. - So when we had posed this question to the applicant before, they would not be moved forward with the campus that they had. But that was the question, would they be able to build it a lesser amount? That is if the substation was tied to the volume of data center they were constructing.

[04:27:51] But the applicant is in the audience, but I've been told that no, that this is needed for this campus to move forward. If it were not to go forward, then there's other IP uses that the original rezoning allowed that they would be able to develop on the property. - Such as?

[04:28:06] warehouse uses other IP uses and yeah okay okay thank you mr. Turner thank you madam chair I have no questions on this application for the can we turn him down I'm sorry mr. Turner hold on stop this time you're you're you're you're we can hear you well okay okay so I can wish maybe a little bit more than that keep going all right um i don't have any questions on the substation per se since it was brought up

[04:28:44] the tier 4 generators make about 50 of the noise of tier 2 generators which are the predominant number of generators in loudon county uh they eliminate 90 to 95 percent of the nitrogen oxide particulate matter 2.5 they have filters and scrubbers generally associated with them that that eliminate unburned hydrocarbons, sulfur dioxide, and CO2, and their maintenance life is much, much longer than Tier 2 generators.

[04:29:15] Tier 5s are right around the corner, and they're probably even cleaner, and I've got numerous citations if Supervisor Sains would like to see them to back that up. I can provide that data easily. That's all I am. Thank you.

[04:29:30] Thank you. So, first of all, I did come out, and when I come out, I'm coming out for land use issues. And so I didn't need to talk to anybody because I was coming out to look at the land use. Am I on? I was coming to look at the land use issue.

[04:29:48] And from what I saw with my own eyes, the substations would be fairly far away from the homes. So it does make me question, is this an issue about the substations, or is this a way to say, I just don't want data centers near my home?

[04:30:04] which I can totally understand that, but the separations themselves are not in a line of sight to the homes that I could see, and I did go out, drove all around for quite a while on a Sunday afternoon. Having said that, there have been some things that have come up today that have given me some reason to say maybe I should have not just come out but met because I am getting some conflicting stories, and I'm a little concerned about that.

[04:30:30] For instance, it was my understanding, and I will say I know this applicant well, He has never lied to me. Never. It was my understanding that the homeowners did have to sign something when they moved into their homes that said, or know, or have something, they had to know and acknowledge that they knew that their homes were going to be next to a data center.

[04:30:54] That question was asked, and the homeowner said no. I want to go back and check on that, because that's a thing for me, because I was told that was a yes. If that is not correct, then I want to have that conversation.

[04:31:11] That's the first thing. The other question I asked was, could other data centers, if they were to be built in the future that might be by right now, use this substation as well? I was told, no, that this substation would be simply for the use of this application.

[04:31:32] I'm hearing something different from the staff on that right now, and that gives me a little bit of pause as well, because I need to know that I know that I know the answer to that, because you're right, we do not want to create another hidden wood. So that's an issue.

[04:31:51] It is true that the applicant did say that they would not need a substation. that correct at the time of the previous rezoning they were asked if there was needed a substation at the time they did not identify the need for a substation okay so I'm not I'm not gonna get too twisted about that one because I'm say this one more time this applicant has never lied to me and so if at the time they said that I'm going to believe that that's what they believed at the time I'm going to I'm going to say that because I have no reason to believe different the situation may have changed that doesn't mean anyone was lied to doesn't mean anyone was lied to.

[04:32:27] And so I think that's important to say. The Planning Commission voted to deny this, correct? Yes, ma'am. Based on what? The concern of the location of the substation relative to the residential on the other side of Cross Trail, they felt that that was not an appropriate location or that was not screened in a sufficient manner, given its proximity to the residential uses.

[04:32:54] Okay. I'll talk about the rest. Was my time running? God, that went quickly. People who speak are right. That time goes real fast. I will talk about the rest inside of a motion. Ms. Almsay, would you like to make a motion? Yes, ma'am. I move that the Board of Supervisors approve LEGIE 2024-0043, Tuscarora Land Bay 3 substation, SPECS 2024-0059, and SPECS 2024-0060, Subject to the conditions of approval dated September 11th, 2025 and based on the findings

[04:33:31] for approval provided as attachments 1 and 3 to the September 16th, 2025 Board of Supervisors business meeting action item. Motion is made to a second on the motion. I'll second it. Motion is made second by Supervisor Kersner. It's getting late. I almost said to Crony. Discussion on the motion, Ms. Umstead. Thank you, Madam Chair. First, I want to thank Brett Sposa and Emily Kasabian,

[04:34:05] who were gracious enough to meet with me for over an hour about their concerns. They have done voluminous research. They've organized their community, and I want to thank the community for coming out tonight. It is really difficult to vote against the wishes of a community, and these are strongly held and sincerely held wishes, but these data centers were approved

[04:34:37] before the community was built, and I understand the thoughtfulness and intelligence that members of the community have put into this, figuring, well, if we can stop the substation, we potentially could stop the data centers i absolutely appreciate that i may not agree that that is the way we should do business because the data center developer has the same private

[04:35:14] property rights as the citizens for me it's probably going to boil down to the fact that the data centers were approved before the residents moved into their homes the developer has done a lot to improve this application. In discussions he has had, I know, with me, but I also believe with many of my colleagues who are concerned about the residents nearby.

[04:35:44] This did not have to be an entirely 100% GIS substation, the smaller and less intrusive um version of the modern substations but the developer decided to provide that this didn't have to be as well screened as the developer has agreed to screen it the noise mitigation efforts made that by the developer beyond what he is required to do under county ordinance the fact that the he has agreed to prohibit the use of gas turbine generators to support the adjacent data

[04:36:22] center development is is a big win for this community even though i don't expect the community to really see it that way and the fact that the tier 4 generators are now going to be used rather than previous generation generators which were louder and more polluting i think is is a big win for the community as well um i don't want to see those data center buildings turned um so that the full length of them face the community which is what i am concerned could happen so i will be

[04:37:00] voting yes mr latour thank you so this was first this first came to us in 2015 um and i was the only member of the board at the time uh that's still up here um february of 2015 and i voted against this application i was a five four vote and i voted against the application because of the yellow strip that was seen on the zoning picture that staff showed which was the conversion of all of this land which was industrial at the time to allow for residential near it there you

[04:37:37] go that's the one the yellow is what was new in that application the interjection of residential Now, at the time, none of us had any idea we would be talking about data centers as what that industrial would be. We were thinking offices, we were thinking warehouses, all sorts of things.

[04:37:56] But the reality was, when you mix residential with industrial like this, you end up with issues. And this is where we are today, all these years later, with issues. It is true, if you do any sort of looking back at any of the coverage of this in 2015 or 2019, it's very evident this turned into a data center application before any of the homes were built, but also as part of the same application.

[04:38:26] So at some point, listening to the comments in the public hearing, reading everything that came in, to me it was really clear that this was really not just the substation, this was about the entirety of the project because the substation is 35 feet enclosed, not visible based on the elevations. The data centers are what's visible. So the question became the applicant can build 1.4 million square feet of data centers, folks, without anybody doing anything here. Now you can argue that if they don't have a substation, then they may not be built. I'm sorry, the data center community will find a way to build it. They will find a way to get connected. We've seen this

[04:39:05] over and over again if you don't believe that you haven't been really watching what's going on so i don't buy that argument so to me this really became about how can i actually how can we try to improve what's going to be looming over you which is data centers and that is by getting fewer data center less square footage and make them better looking and get as much buffering as humanly possible so the applicant in this case who could build 1.4 million square feet of data centers has committed in writing to me and the board and staff to do it's less than I don't have the exact number it's 700,000 or less and it's the architecture that's here substantial conformance

[04:39:43] with the architecture that's there which is essentially office style buildings with a lot of buffering that is a lot of good faith to try to improve what this is going to look like I agree if we could go back in time this is not a great situation but I'm always trying to make it better and not just walk away and so I think by approving this and with the good faith of the applicant in doing so we do actually make it better even though I recognize the residents don't always see it that way in this moment. Thank you. Mr. Crony. Thank you Chair Randall. So I will not be

[04:40:17] supporting this application. I want to thank all the residents for coming out and wearing red. I always put residents first, so I want you to know that. That is why I ran for office. I always put residents first. And I hear you that you are concerned you will be another hidden wood surrounded by industrial uses.

[04:40:37] I met with Emily, and I want to thank you for all your hard research and all of the points that you made. You should work for the county. You did a really good job. I believe, like the residents, that you cannot resolve the fundamental location issue of the substation.

[04:40:55] And the planning commission agreed that the substation would have a negative visual noise and character impact on the community and requested that the substation be located in the back of the three data centers. I want to reiterate that. I think that is a better location in the back of the three data centers.

[04:41:15] Its scale and visibility make it an intrusive presence in an area in close proximity to recreational. There is a tot lot and a fire pit right off Cross-Trail Boulevard for the community and residential uses. And I agree with the residents that no amount of buffering, berms, or GIS design mitigates the fundamental incompatibility of placing this substation in such a prominent location near the residential community of Chescarora Crossing.

[04:41:46] The proposal does not align with the recommendations in the Loudoun County General Plan. are incompatibility issues with the utility substation use in the context of neighboring residential. Frankly, data centers and substations are not compatible use with their surrounding residential uses. I didn't vote for the data centers in 2015 or 2019. So I want to make that clear. I didn't vote for them. You weren't here. I was not here. That's right. So I don't have any obligation. I'm here for the residents. And I do think there should be a transitional

[04:42:23] uses, a transitional use between the substation and the residential uses. That was an issue with the Arcola Grove application. That's why I didn't vote for that either, is that there was no transitional use between the residential and the substation because they are not compatible at all. And I do want to make it clear that there will be 60-foot or 70-foot H-frames or utility poles.

[04:42:49] So this is not all an enclosed GIS substation. So it will be, you know, it will be very impactful to the residents, and it will impact, I believe, their quality of life and property values. Thank you.

[04:43:05] Mr. Sainz. Thank you, Madam Chair. Thank you to the residents who came out and spoke, emails that we have been receiving, read them all. Thank you to the staff for the update. Thank you to the applicant for your updates and inquiries and sending your information that you sent as well.

[04:43:29] I am conflicted on this item because, yeah, when we voted for this in 2019, as was discussed earlier, there was no discussion of a substation. Because, again, at that time, we were just at a different time than we currently are in in 2025.

[04:43:47] And, you know, I have heard, as it's been said earlier, I have heard conflicting information. One hand, I hear the residents were told and were given documentation and possibly had to sign documentation saying that they did know or being presented that they should know that a data center was coming to this area when they were purchasing their homes.

[04:44:07] Then we just heard from some statements and I received an email saying, no, this is not accurate. We didn't receive any information. So, with that conflicting information, I, at this time, cannot vote yes for this application, and that's one of the sticking points for me.

[04:44:27] I do feel, yeah, it would have been better for the substation to be put behind the site as the Planning Commission recommended in their notes. But keep in mind, again, when we voted for this, this was, you know, it took in 2019.

[04:44:44] So we had a lot of residents say they did their research. We had a resident say they were a real estate agent. So it's interesting if you bought and you're a real estate agent, I'm pretty sure you did your due diligence and want to know there's a data center coming, possibly. But at this time, yeah, I cannot support this application as is, even though I will give credit to the applicant.

[04:45:01] They did a good job with reducing a lot of things that Supervisor Letourneau had mentioned his um in his comments and the and the illustrations we received uh this evening thank you thank you mr kirschner thank you madam chair um thank you everyone for coming out um i i listen and i appreciate everything you had to say i think this is a one of those applications you can go 49 one way 51 50 50. you could you could break the tie on a variety of different things um i think it kind

[04:45:38] of boils down to two things for me and some of it that supervisor letourneau and agree a lot with with what um supervisor um said said you you could have 1.4 million square foot of data center here

the applicant has come in and basically cut that in half which is significant i think for the residents should recognize that because you're that's a that's a tremendous concession when you have been granted the right to build data center they've also turned them lengthwise and i you know from the renditions they've also screened this incredibly well and this doesn't and i think chair randall has it right that a lot of what people are concerned about is the data they're

[04:46:16] going to see i i get that i i appreciate that but this has already been zoned for it it was probably residential shouldn't have been approved here at the time but i think that was part of the whole the large application and so now we as supervisors on this board have to make a decision do we kind of go through this process and say okay what is what is ultimately going to be best looking what is going to fit best here and what could what could be far worse i will tell you that there have been many applications that i've looked at in the past since my time on the board that were rejected and something worse comes in before and i think ultimately that's what could

[04:46:53] essentially happen here i mean you can you can say we're going to go for broke and just turn it down and maybe wishful thinking something will happen but as supervisor laterno say the data center industry they're going to find a way because they've invested millions and hundreds of millions of dollars in this these sorts of land deals so with that said um that is going here so it's a question of the substation um i uh think they have come forward with a lot of concessions they've gone now below 35 feet i think there was some talk about a 60 foot pole behind this is going to be hidden by the data centers in large part i think it's not going to be seen um unlike suggested

[04:47:30] by supervisor to crony and um i think ultimately this is as good application as we're going to get to now yes perhaps there was a way to fit something in back but there could be you could get far worse this substation could end up being someplace out so it'd be far worse for this community or another community and i think quite frankly they've really hidden this substation very very well um so i'm going to support this application i think it is the as much as has been given given and taken here and a lot has been given i appreciate what the community says i you know i wouldn't want this necessarily across from me either but um it's fairly they're fairly attractive

[04:48:07] buildings they're not what you want to see yeah in a perfect world we could put residential here but that's just not going to happen so from a practical perspective i think we have to support this application thank you thank you mr brixman uh thank you madam chair um i there were some um accusations made tonight that not one supervisor responded to community members asking to meet i i did have a virtual meeting with community members on this so i just wanted to correct the record we know that chair randall went out and drove around the site i've been out on the road plenty of times

[04:48:40] i wanted to at least say that the developer who has brought this application i have never known to do anything in bad faith and i what we discussed when i met with the developer was that first-time homebuyers signed documentation that said they acknowledged receipt of information about what would be built around the homes that they were buying.

[04:49:13] If you didn't look at the attachments and the documents, listen, when I bought my home, I probably didn't look at every single document that I signed off that I saw, HOA documents, and those sorts of things. If you're a second owner of the home, you may not have had to sign that acknowledgement.

[04:49:30] But also, in the documentation, there was no mention of substations, and the applicant acknowledged that to me. No, substations were not in that documentation. I'm coming now to ask for the

substation.

[04:49:48] So I just wanted to make sure that we were clear, and also there were some accusations that this is somebody coming from outside the community trying to do this application, and that is absolutely not the case. This applicant lives in Loudoun County and we work with this applicant on a regular basis having said that I'm not comfortable um voting for this substation for the very reason that when first-time homebuyers were to acknowledge what was going to be built around them a substation was not included in that documentation and um you know it's a predicament right nobody anticipated

[04:50:28] probably in 2015 or 2019 that we weren't going to have the power to power all the substations that were approved. They are trying to solve that problem. I disagree with the way they are trying to solve that problem. So I will be voting no on this motion. I appreciate the community and all your engagement. I asked my staff to tally up how many emails we received on this, and it was 150 all unanimously opposed. We got a number more, but they were duplicative, but about 150 emails opposed and not one email in support. So with all that said, I know it's a predicament for the

[04:51:07] developer. I know it's a predicament for the data center community. The power issue is a predicament, but I cannot in good conscience vote to place a substation here that homeowners never thought would be there thank you I need to make a point right now because we it was said so I don't like having to do this but I need to do this we cannot make decisions on power we are not legally allowed to make decisions on power we this board has requested from our general assembly that we can

[04:51:42] use power as one of the issues that we consider when considering data centers but as of right now That is not something that we can consider. I say that in response to what Ms. Bricksman just said, because I just don't want anyone to think that that's how we can make this decision, because legally we cannot. Mr. Turner.

[04:52:06] Thank you, Madam Chair. I want to commend the homeowners. This is a textbook gold star effort for coordinating community effort and speaking with one voice. You have been very persuasive and compelling, and this is how community involvement should look.

[04:52:26] I want to commend the applicant and just echo what everyone else has said. The applicant is an all-star in the development field in Loudoun County. And as I think Supervisor Bristman said, a Loudoun County resident, this application has bent over backwards to accommodate its location and to ease the visual impact on the residents.

[04:52:53] And I really, truly appreciate that. But in the final analysis, I agree with Supervisor Kirshner. This is a 49-51 vote for me, and unfortunately, I'm going to have to vote against this. I'm uncomfortable with the proximity of this substation to the residential neighborhood.

[04:53:11] Thank you, Madam Chair. Thank you. Ms. Galash, do you have anything? Do you have anything? Okay. As is always the case on these moments, I seem to be the swing vote. I hate that, but I seem to be where we're at.

[04:53:27] I do want to say a couple of things because I am very big on getting the facts right. One, I have asked the Commission of Revenue many, many times of whether or not a data center near or a substation near homes has impacted property value in Loudoun County.

[04:53:46] In no case have we found that that is true. I'm not saying it won't in the future. I'm not saying it has in other places. But right now, that is not true in Loudoun County. I need to say that and put that on the record again we can't make this decision based on power we just absolutely cannot we just cannot what I was hanging my hat on and what I might still hang my hat on is that I believe when people move to a neighborhood or people move somewhere if they know what's coming or they know what's there and they choose to move anyway and that's

[04:54:22] a decision of grown adult human beings. So I have asked numerous times, did the community know they'd be near a data center? And the answer has been absolutely yes, and that there was something that was signed to say that. The reason I went out to see it is because the substations are not, you will not, the substation itself is not near the home. You won't see the substation. So it leads me to believe that this issue is really more about data centers than substations. It also causes me to have to find out that I know, that I

[04:54:56] know, that I know if that happened or not, if you knew that there could be a data center by your home. We have people who come in and, I mean, I've had somebody that came in and complained because she could hear kids on the playground play when she moved behind the elementary school. And so I'm always like, do you know where you're moving before you move there? And that helps me make my decision. So that's the first thing. I do want to know a little bit more from Mr. Sposa, Mr. Brett Sposa, the first speaker. I can't remember

[04:55:34] your exact words, sir, but it's something like, if you have to approve this, then change it to do on land-based six, I think you said. So I want to have that conversation a little bit further. I will say again, this applicant has never said anything to me that wasn't true.

[04:55:53] And we talk all the time. We talk all the time. It is not true that if we don't do what citizens say, it is because we're not listening. It's because we listened. We weighed a lot of things, including what could happen if this wasn't there, what else could happen, and made the decision that What could happen could be worse than what is coming, than this data center.

[04:56:18] So my last thing I'll do is ask staff, can you tell us exactly if the data center wasn't built, what could be built here? The number of IP uses that are allowed by the district. Yeah, no one behind you knows what IP uses is, sir.

[04:56:33] I'd have to pull the district up, but, you know, general, similar in character. You would have warehousing, distribution, there would be other elements, and they're pulling up the district right now. I apologize, but a number of similar industrial uses that you would see in the area that exists today. Other similar industrial uses? Yeah, you have. What I'm going to do, I'm going to go to Ms. Umstead for her closing, but I do want you all to answer that question, because I think it's important that the, okay, while Ms. Umstead closes, make it long, so they have time to look up the answer. I have it now, if you'd like me to go ahead. Okay, tell me now. So, it can be anything ranging

[04:57:10] from an animal hospital to adult daycare uses, child daycare centers, business support uses are all permitted by Wright, repair and maintenance services, an auction house is allowed by Wright, vehicle repair, light is permitted, heavy, and sales and retail are special exceptions.

[04:57:31] Let's look for heavier industrial. Industrial by Wright, contractor yards, data centers are obviously special exceptions flex buildings general manufacturing research and development are

permitted by right in the ip district mini warehousing is a minor special exception wholesale distribution is a permitted use and i can go on but that's a selection of them i just want i wanted to citizens to hear hear that okay um miss um so i'd like to close uh thank you madam chair one of one of the reasons or the primary reason that staff recommended approval after the applicant

[04:58:09] agreed to further conditions was that this is in keeping with the comprehensive plan. You know, if one of the uses that could go here by right is a distribution center, the traffic load is going to be significant on Crosstrail Boulevard.

[04:58:35] Data centers provide almost, generate almost no traffic. So we're going to be looking at a much heavier-use facility potentially, but I support it even though my community doesn't want it.

[04:58:53] I have the greatest respect for the community, and I wish I could vote with you, but I just think it could be much, much worse than it's going to be. Thank you. Thank you, ma'am. All right. The motion was made by Supervisor Umstead, seconded by Supervisor Laterno.

[04:59:11] All the people say aye. Opposed? no that is four four i am sorry nay yeah i well okay that is okay i'm counting i'm counting miss glass as an eye i'm counting mr um kirschner as an eye mr mr umstead mr eternal as an eye right yes everybody else is a nay that's a four four vote i am going to abstain because i need to go out and find out some of the things that i was told to i know i did this before and y'all just got to get over it i'm sorry but this is a big deal so and by the way i care about the residents too

[04:59:50] I know it's a big deal, but I need to have a couple of questions answered. I will tell you to the community, I am leaning toward this. I'm saying that right now, and a lot of that will be based on if I found out people knew already. A lot of that would be based on that. But I'm going to abstain.

[05:00:08] I did go out and look. I will come out and meet, and I'm going to abstain and send this to the next. I will put this on the agenda for our next business meeting, okay? So the motion will fail 4-4-1 at this time. it will come back at the next business meeting if you have you want to send them emails you can send them to me because i'm the only person right now who hasn't made a decision right but i need to make i need to i need to ask some questions um on my abstention and then at the next meeting i'll have a definite answer thank you everybody no it won't be a reconsideration it's a 4-4 vote there's no

[05:00:45] there's nothing on a 4-4 vote it does but it's not it feels like you have to reconsider well we've We've done this many times. This is how we've gotten to that place at the other time on this issue.

[05:01:12] Madam Chair, if I may, you might want to make a motion to send it to the next business meeting. Supervisor, I'll make a motion to send it to the next business meeting. I'll make that motion unless you want to second on it. No, I don't care.

[05:01:30] I'll submit the motion. I will second that. Discussion on the motion to send it to the next business meeting? All in favor, say aye. Aye. So let's go to the next business meeting formally. Thank you.

[05:01:43] Okay. Item number, where are we? Item number eight. Item number eight. Could staff please come to the table, please? How's it going?

[05:02:45] You're ready when you are. Thank you. Good evening. My name is Allison Britton. I'm with the Department of Planning and Zoning, and I'm here today for the Greenfield Farm rezoning application.

[05:03:07] As a quick reminder, the subject property is 174.4 acres located east of Evergreen Mills Road, south of Shreve Mill Road, and north of Hoagland Mill Road in the Catoctin Election District. The property

is zoned Agricultural Rural 1 and located in the transition small lot neighborhood place type in the transition policy area.

[05:03:28] This is a grandfathered application and was reviewed under the revised 1993 zoning ordinance. The applicants requesting to rezone the subject property from agricultural uses to residential and commercial zoning districts for the development of 518 total residential dwelling units, 496 single-family detached and 22 multifamily attached dwelling units with up to 44,265 square feet of commercial uses.

[05:03:53] The applicant's also requesting a number of special exceptions and zoning modifications to permit gas pumps, accessory to a convenience store, a restaurant with a drive-thru, and an exception to reduce minimum lot width for certain lots from 40 to 30 feet.

[05:04:10] Additionally, a minor special exception to increase maximum square footage for retail uses. Like I said, number of zoning modifications and a subdivision exception primarily to reduce yard requirements, allow single-family detached units to be served by private streets, exempt certain private alleyways, tree plantings, reduce open space between buffering and buffering between commercial and residential land bays, and increase total area devoted to retail.

[05:04:38] Here is the current concept development plan. The proposed extension of Cross Trail Boulevard bisects the property with the commercial land bay and the multifamily building located in the northeastern corner. There are archaeological sites and historic house located to the south. The lot colors symbolize the different lot types shown in the legend on the left.

[05:05:00] Since the board public hearing, the applicants made several changes to the application. Regarding site design, the applicant has revised the site design and relocated housing units further from historic resource areas and is now proposing a 5.4-acre orchard site between the two resource areas on the southern portion of the property.

[05:05:17] Regarding housing units, the applicants revised the proposed mix of units but has not changed the overall density or number of units requested. The applicants increased the number of type A units by 34, decreased the number of type B units by 52, and decreased the number of type C units by 28, increased the number of type D units by 46.

[05:05:38] The applicants increased the total number of type D units not to exceed 2,000 square feet from 25 units to 40 units, proffered to limit the average habitable floor area for those units to 2,450 square feet, and the applicants added a commitment to provide a first floor bathroom in at least six of the proposed attainable dwelling units.

[05:06:01] Regarding historic resources, the applicants proffered to execute a maintenance agreement between the property owner and the county to perform stabilization and protection measures and has proffered to provide a conservation easement area around 4.2 acres surrounding the portions of the locus one two and three sites pointed here in the bottom of the screen and finally regarding transportation the applicants revised commitments and now proposes to construct evergreen mills road to its ultimate condition of a four-lane median divided roadway with turn lanes as anticipated in the 2019 county-wide transportation plan and construct a half section including adjacent turn lanes of cross-trail

[05:06:36] Boulevard. The applicant now requests credit against capital facilities and regional roads contributions for two lanes of the construction of Evergreen Mills Road. Staff continue to raise for board consideration issues related to heritage resources, credits against capital facilities, and the level of detail

for attainable housing commitments. The proposed development will result in implicit impacts to historic resources located here. This is largely similar to what was presented

[05:07:14] at the board public hearing, so I'll try to move quickly here. But this remains an issue for board consideration, the sufficiency of the heritage resource protection measures. Here are some more graphics, just to be clarifying. Additionally, as I said, the applicant has changed previous commitments for transportation, and staff continue to raise for planning commission consideration, using capital facilities to support construction, capital facilities contributions

[05:07:48] to support construction of future evergreen the four lanes of evergreen mills road here are the monetary breakdowns staff can support credit against regional roads contributions and note the increased capacity to the area as a benefit these are the same as presented at the board public hearing the same policy considerations that staff are raising and overall staff can support board approval of the applications um generally the application is consistent but not entirely

[05:08:25] consistent with the 2019 general plan the commission forwarded the application to the board with a recommendation of approval staff are happy to answer any questions i have dtci marie fam and lori ratcliffe myers available and also i have steve thompson with um heritage preservation available thank you where's pensive thompson it um oh right here there you are when my glasses are on you're actually there thank you very much um this is in the catoctin district uh uh mr mr kirstner you want to go to write your motion or do you have questions first

[05:09:02] all right i think i'll have some questions so i think she wants to leave it open but no that's not up to her i know so i would ask just to have a deference to my fellow supervisor to allow some questions at this point okay it doesn't look like anyone else has the questions but if they do So I think, first of all, I'm very appreciative of the commitment to build the four lanes of Evergreen Mill.

[05:09:26] That was something I specifically asked for. I used to live out here at Hamlets of Red Cedar for my fellow supervisors. To me, this is a very dangerous road, fairly high speeds, two lanes, no shoulders, and this is obviously in the transportation plan to ultimately build four lanes down Evergreen Mill, and this is a very important section that needs to be built out ultimately.

[05:09:50] I think there's significantly more that still needs to be built, but between this and the previous application next door, I think we're moving in the right direction in terms of getting our roads to be a lot safer. So I'm very appreciative of that. I think the big question, and I think Supervisor DeCrony is going to hone in on this, too, is this historic resource preservation.

[05:10:11] What I want to ask staff is how is this actually going to work? Because my understanding of this is not, and I think this is just for all of our benefit, as well a little bit for mine. I think I understand it, but this is a site that is separate from the application. My understanding from talking to the applicant, they want it to remain in AR1 so that whatever future use can have the zoning options of AR1, not be in the HOA, et cetera, I guess gardening, animals, whatever the case may be.

[05:10:36] But what are, and my understanding is the applicant has also agreed to put \$100,000 surety, which ultimately ends up in the hands of the county. It doesn't go back to the applicant, so it's not really a surety in the sense of a traditional bond. So that's the first question. Is that true? and ultimately how is this going to work um will this is not part of the application but it is a proffer to do certain things could it possibly happen that this um house gets ultimately removed sold to somebody else something else gets

done done here it gets torn down or is this is there a commitment that this will be preserved as part of the proffers here can any staff speak to that

[05:11:15] that would be very helpful i think for us to understand thank you i can give kind of a high level and then I will invite Steve to come up and also add on. But generally the applicant is committed to perform a maintenance agreement after conclusion of the legislative application.

[05:11:35] The elements of the maintenance agreement between the county and the property owner are things like documentation and condition assessment, stabilization and moisture prevention, securing windows and doors and adding a fence around the property pest control and then a monitoring and maintenance agreement as part of that commitment there is the 100 000 surety to be utilized if further preservation plans are not established within five years so i will let um steve also and before my time's out can you address what is there any guarantee that this

[05:12:14] remains. I'll let Steve answer that. Thank you. Good evening. Steve Thompson. I'm on the historic preservation team, the Department of Planning and Zoning. No, and I think that's the short answer to your question is no. There is no guarantee that the maintenance agreement will result in the long-term preservation of the house. It's an agreement for five years after which anything can happen. And it's an odd sort of agreement because it's a proffer but not a proffer.

[05:12:56] It's a very complicated situation for me to wrap my head around, but it does not guarantee preservation of the house Well, I'm out of time. So you are thank you very much. Mr. Crony. Thank you chair Randall. So yeah, that my questions were on the same line So when my understanding is that the maintenance agreement is going to be recorded and so it will thought it will be conveyed to the next owner i don't know maybe um mr rogers can explain that

[05:13:36] proper number four which is contained on pages 19 and 20 requires that the maintenance of agreement be recorded it would be recorded in the land records and would bind future owners um i i'm more familiar with that than with the terms of the maintenance agreement itself so i i defer to the planning staff if it's just a five-year maintenance agreement but it has to be in a recordable form and it does say the maintenance agreement is only valid for five years i think that is in the proper statement am i correct so it would so that might change this as far as

[05:14:16] preservation who is supposed to write the preservation plan who is supposed to write the maintenance agreement the preservation plan because it's supposed to be part of the maintenance agreement that will all be done my understanding it's the responsibility of the owner of the property they will engage a consultant consultants will do various types of studies for the building as as of now we know not an enormous amount about the the fabric of the building it's not part of the application area staff has no access to that part of the property we can look at it from the

[05:14:54] road. We can see what's been done from the road. We don't know what the state of the house is, the interior, the structural integrity. Those are all things that will be done as part of the maintenance agreement, which will not go into effect until the application to rezone has been approved. Okay, so you're saying that all future owners will not necessarily be held to the maintenance plan or the preservation plan after five years?

[05:15:25] My understanding is that if there is no new preservation plan after five years, there's no new preservation plan. There's no preservation plan or maintenance plan. Or maintenance plan. Or

maintenance agreement, sorry.

[05:15:40] The maintenance agreement is really just to put the house, to mothball the house and to keep it in sort of a steady state, prevent it from deteriorating further with the ultimate goal ideally of rehabilitating and reusing the building in some way. Okay and and I think the Heritage Commission asked that county staff be allowed to access the house and grounds to better assess this condition and the protective measures in place but you're saying county staff can access the house or the property? No we have not we have not been granted access thus far. Okay all right

[05:16:18] thank you mr uh saints do you have anything um no mr turner thank you madam chair um staff i just want to be clear here so in a nutshell the applicant is asking for a credit against capital facilities for a road that is not in the ctp is that correct uh to clarify supervisor it is in the

[05:16:56] CTP. It is not in the CIP. Okay. It is in the CTP, but not in the CIP. All right. And they are including affordable units or AHUs or UNUs, some combination thereof, according to the revised 93 at 12.5%, whereas the new requirement would be 15%, correct? That is correct. Okay. And I have I have some fairly serious concerns about the maintenance of this historic residence.

[05:17:33] Okay, that's all I have. Thank you, Madam Chair. Thank you. Last time we were here, there was information put up that said that there were quarters for the enslaved on this property.

[05:17:49] and and I became fairly concerned that that was something that the that the applicant was not addressing or that had not been addressed and really surprised because of who the applicant because of who these people were van meter is as it turns out that was not correct correct that was not correct that information that was in the staff report was incorrect and there were some slides on

[05:18:20] there that was not this piece of property is that is that right madam chair the slides were misleading with where the arrows were pointed to show what was true but the staff report remains consistent with with the cultural resources surveys is there on this property residences or any structures that could have been residences for formerly enslaved human beings there are no standing buildings, no. But there is an archaeological site, it's that set of

[05:18:59] three yellow blobs east of the main house, described as Locust 1, Locust 2, and Locust 3. Those very likely, we certainly can't say for sure, but very likely those archaeological sites represent the physical remains of residences associated with individuals enslaved at Greenfield Plantation in the late 18th and early 19th century.

[05:19:27] And do you right now have any way to verify it? Do you have any permission to do any more studies on it? So right now, the site was initially identified during the phase one archaeological survey, which was a requirement of the application. The applicant did during the course of review, undertake a phase two significance evaluation. That work, it was a very, very good study. It was very thorough. It's, if there were not enslaved people living at that

[05:20:04] site, it's hard to imagine where on the property they were living because they were certainly there. I'm going to cut you off. My time's getting low. Is there any appetite with the applicant to put up a marker, a memory marker of something that says what, what, the fact that this was a working plantation and that there were people who were enslaved who were there, is there, is there a willingness on somewhere on this site and possibly near that point as possible to put up some kind of commemoration for that?

[05:20:40] The applicant has, yes. Okay. The applicant has proffered to put up historical signage. Okay. At a location on the site, they've also proffered to have a narrative, a publicly accessible narrative history of the property produced and made accessible both to the residents of the HOA to the county and to the copy submitted to Bulch Library. Thank you so much. Thank you too. Mr. Kirsten would you like to make a motion?

[05:21:07] I would Madam Chair. Thank you. I move the Board of Supervisors approve leji 2023-0065 greenfield farm rezoning zmap 2022 or excuse me zmap 2023-0003 specs dash 2023 0008 specs 20 24 0022 specs 2024 0023 um spmi 2023 0004 zmod 2023-0012 zmod

[05:21:45] Zmod-2023-0013, Zmod-2023-0014, Zmod-2023-0015, Zmod-2024-0009, and Platt-2024-0249, subject to the proper statement dated September 12, 2025, and the condition of approval dated September 2nd, 2025, and based on the findings for approval provided is Attachment 1, 2, and 6 to the September 16th, 2025 Board of Supervisors Business Meeting action item.

[05:22:24] Second. Discussion on the motion. Mr. Kirshner. Yes, as part of my discussion, Madam Chair, I have one question for staff just to make sure I have clarity, if that's okay. I'm sorry, say it again. Just a question as part of my -- Of course. Yeah. There is a -- my understanding there is a second -- the applicant has a -- the Orem family actually has a second piece of land that will be coming later is it currently an application yes that's correct okay so um part of my uh i think there was some desire to see this um house the old historic house here have a longer maintenance plan and i think that might would be my desire too i don't want to hold up this application in order to do that however with that

[05:23:04] said and obviously the applicant doesn't have to do this when that second when that second one rolls around, perhaps there's an opportunity to have further discussion with them about a longer maintenance plan on this. Obviously, this is not binding them in any way, but I think that would be the desire, and I think I would ask to see that come forward perhaps on the second. Now, obviously, I appreciate a lot of what's been done in this application. I appreciate the widening of Evergreen Mill. I think that's absolutely necessary. I think it's going to be done faster. It's going to be done less expensive than the county's going

[05:23:38] to do it and it's going to be a far more far safer for the community um but this carved out historic area um honestly is uh is is somewhat of a gift um that they don't have to do this but they are and i appreciate a lot of the markers that they've committed to and and uh as as chair randall pointed out i think that's important i think history is very important to preserve and this is obviously an older historic house that came with a significant piece of land that was farmed here in the county for many, many generations. Many people are now going to get

[05:24:11] to enjoy this land, but this will carve out a preservation aspect of that. So I think in this general area, this was somewhat conceptually, there's a little bit of mixture of commercial, a mixture of residential, and of course, a commitment for the preservation of this AR1 section for a period of time, certainly with a maintenance plan, that I think is ultimately what was envisioned. I mean you talked to the old timers who came up with the TPA area and this is ultimately in large part what they envisioned. Old timers. Did I say old timers? That'd be Matt

[05:24:47] you're talking about. No, far before Matt. I'm talking about when the TPA ultimately was created in this area of land planning. So I would appreciate my fellow supervisor's support for this application i think it's a good application no application is absolutely perfect but i do think the applicant

has come forward with a number of um new proffers and recommendations has called me and worked with me has reached out to a number of the supervisors and worked through this process and as as everybody says you know um as much as i'm not a huge fan of a lot of houses i do think

[05:25:24] that there is a huge desire and need for houses in this county and i think this meets a very good single-family home application. Thanks. Ms. Umstead. Thank you, Madam Chair. Although I love this developer and his whole team, they're some of the nicest people around, and this will not surprise them. I cannot support it, and my primary reason, once again, is the additional annual school operating costs, which for this application are about \$5.3 million a year.

[05:26:01] As we all know, those are not covered by any capital facilities contributions. In fact, the school capital costs by themselves exceed the amount that this application would pay in capital facilities contributions to things like transportation and other capital facilities.

[05:26:25] So regretfully, I'll be voting no, thank you. - Mr. Crony. Thank you, Chair Randall. So I do want to thank the applicant for putting in some units that are market value affordable, smaller units, smaller lots.

[05:26:46] I know the applicant kind of reconfigured the layout to include more type D1 and D2 lots that are 2,450 square feet, and then there's 40 at 2,000 square feet.

[05:27:03] So I really appreciate that. I do, you know, appreciate also that there is a maintenance plan and there's an escrow to pay for the maintenance, the stabilization and protection.

[05:27:18] But I do want to make sure that it's longer than five years. I think Mr. Johnson brought up a concern about it being only valid for five years. I think I heard that the vision, the long-term vision for the house and surrounding property is adaptive reuse.

[05:27:40] So it sounds really exciting that there could be something there for the community, either a restaurant or, you know, some type of entertainment use that really, you know, helps bring that house back to, you know, some kind of working use for the community.

[05:28:03] And I look forward to that. And, you know, I do think there is the opportunity to look at it potentially in phase two. I would say that I don't want, I think the property needs to be all preserved with the house.

[05:28:21] And so it's not just the house because you need some property around it for adaptive reuse, you know, for parking and potentially maybe for some agriculture if you're doing a brewery. So, I do appreciate that you put up something in the proper statement that was not, I know the house and the property really isn't included in this application, so I will support this with the understanding that Supervisor Kirshner will work with you to make sure that, you know, the five years is kind of eliminated, if you will, and also that staff can maybe get access to the property, because I know that the Heritage Commission thought that

[05:29:00] That was something important, you know, just to document some of the history and to look at the condition of the House. So hopefully we can change that as well. Thank you.

[05:29:15] Mr. Sainz. Thank you, Madam Chair. Unfortunately, I cannot support this application at this time.

[05:29:30] Mr. Turner. I'm sorry. Yeah. Mr. Turner. Thank you, Madam Chair. I have no comments. So I will support this. I will once again say that at this point in Loudoun and in the region, the number one

issue for people is there are not homes.

[05:29:50] And when there are not homes, we cannot bring jobs to the county because people have no place to live. When companies are ready to move to a location, they ask about schools, and they ask about housing, and they ask about traffic. We have schools right now that are sitting under capacity, so it is one thing to say it's going to add more money to schools if you have to build new schools, get new classrooms, get more teachers. None of those things have to happen

[05:30:25] right now because we have schools that are under capacity. It's possible some boundary line adjustments will have to happen, that's true, but we have schools that are under capacity. So you cannot make the case when you have available staff and available schools, available buses, available rooms that's going to cost more money on the school system when it's already built and available.

[05:30:47] That's not a logical assumption to make. What is a logical assumption to make is, and what we know, is that we have had companies overlook us because there is not enough homes at enough different price points.

[05:31:03] And that every study, not just in Loudoun, but more regional studies have said that for the first time in this region, traffic is not the number one issue, lack of homes is the number one issue, and the diversity of homes is the number one issue.

[05:31:23] I did have, and some of the same concerns my colleague Mr. Crony has, but I am, like like Mr. Crony, comfortable that the heritage issues and the issues that concern possibly formerly enslaved human beings will be recognized and addressed. I am convinced of that because, again, I think that Van Meter has -- and I say this, there are times that I won't say

[05:31:59] whether an applicant has done done not the right thing but if they have I will say that they have and that meter has and that the and that the fact that it will be um open to the public for everyone to see what is what was um on that those lands is very very important to me and so um all things weighed um especially the need for homes I will support this application thank you

[05:32:29] Would you like a closing? Just briefly, thank you, Madam Chair, and those who are supporting this. I just want to say thank you to the Orem family for their willingness to preserve this property and for the applicant and his, the applicant's attorney and land planners for their willingness to work with us.

[05:32:55] I do hold to what I've said that when number two comes up, I'd like to talk to them about maybe some further protections on this. I think it's a very important aspect, but I do appreciate the applicant and what they've done. That includes a significant financial investment as well as, you know, they've put a fence around this.

[05:33:13] They've already spent, I think, they're going to have a third-party architectural historic documentation condition. They're going to spend, that's going to be well over \$50,000, and so I think that is an important part. Beyond that, that's really all I have to say, but I appreciate the staff coming forward with this, and I know this has been a long time in the making.

[05:33:32] I think since 2019 when this was rezoned. So thank you, Madam Chair. All right. Mr. Kirshner made the motion. Pretty sure I seconded the motion. All in favor, please say aye. Aye. Opposed? Nay. Mr. Sains?

[05:33:48] Nay. That motion will pass, 7-0-2, with Ms. Umstad and Mr. Sains opposing the motion. Thank you. Supervisors, it's 9.30. We have one more item. We might be able to finish by 10 o'clock. Maybe. Maybe.

[05:34:06] maybe right to a motion huh did you say it's gonna take time oh but not necessary and i don't think

[05:34:55] appropriate uh hello staff how are you okay um i think we're ready we have seen this i do think that there are there are more things you want to tell us all right some updates you want to give us We do have feedback from T-LOG that we want to discuss if the board wishes.

[05:35:22] I think just a little bit of that, yes, because not everyone's on T-LOG. Okay. Thank you.

[05:35:44] This is 2A, by the way, everyone, if you haven't found it. It's 2A. Good evening, Madam Chair and Supervisors. For the record, my name is Abdul Jaffrey. I'm the project manager for this project.

[05:36:01] Here with me is Mark Holland and Director Dan Galindo. We'll briefly talk about the data center standards and location phase two scope. Since most of you are already familiar with the content of this presentation from prior meetings, we will briefly present the project approach, including policies and regulatory considerations for phase two project timelines and input from PC and TLUC.

[05:36:36] And again, the purpose is to update the board on the TLUX discussions and recommendations regarding this project and seek your approval for the proposed scope for the project plan. Again, for this project, we're focusing to support staff and the board evaluate data center application by addressing compatibility concerns through a special exception process.

[05:37:07] We will evaluate whether potential impacts of data centers are best managed through policy, zoning regulations, or a case-by-case conditions of approval or a combination of these tools. We'll consider in our analysis an effort the data center industry's evolving operational needs.

[05:37:31] Importantly, we want to make sure that any new rules do not place unintended burden on existing data centers or limit opportunities for positive redevelopment and investment. Phase two CPOM will propose targeted amendments and update to the 2019 general policy, general plan, excuse me, to support the changing and emerging needs of the data center industry by exploring enabling land use policies, including considerations for onsite power generations, microgrids and related infrastructure, enhanced guidance for data centers

[05:38:10] as a conditional use. Develop clear definition for substations and explore potential policies to address their visual impacts. Assess opportunities for district energy system. An aligned general plan with phase one approval through housekeeping amendments, including the removal of the urban employment place type chapter from the 2019 general plan.

[05:38:38] Again, phase two does not have a mapping component. The zone will align with the CPAM and the scope includes reviewing potentially, revising use specific standards for data centers and substations, evaluate provisions related to onsite power generations and energy storage, noise and parking, relocate the content of footnote three and footnote four into appropriate sections of the zoning ordinance to enhance clarity and consistency with standard formatting.

[05:39:11] Again, as a housekeeping, delete the urban employment zoning district, Again, phase two, ZOAM also does not include a mapping component. Staff's recommended approach may be refined based

on our research, stakeholder inputs, recommendation from advisory boards, and directions from the board.

[05:39:32] As if you recall, on March 18th, the board approved a board member initiative directing staff to examine best planning practices for onsite energy generations in the context of data center development and to integrate relevant policies into the zoning regulations into the scope for phase two.

[05:39:50] This directive aligns with the existing objectives of phase two and can be completed within the established project timelines. Staff met with several board members to gather their initial ideas and input for considerations as part of phase two.

[05:40:10] And again, attachment two of your packet provides summary of the board members' suggestions along with the staff's response to each item. At the June 12th planning commission work session, the commission expressed support for the proposed scope.

[05:40:30] Commissioners emphasized the importance of topics such as noise impacts, utility substations, battery energy storage system, energy sources, all of which closely align with the ideas raised by individual board members. The commission also recommended maintaining flexibility in both the scope of the resolution of intent to amend the zoning ordinance and the development of related policies and regulation.

[05:40:56] At the July 28, 2020, 2025, TLUG meeting, members generally express support for the proposed scope. TLUG highlighted several key issues to be addressed, including aesthetics, visual impacts, and noise associated with data centers and substations.

[05:41:13] Members emphasize the importance of using approaches that do not impede positive redevelopment or reasonable modifications to existing data centers. TLUC also discussed topics such as land condominiums and prohibiting data center development in parts of the transition policy area where data centers are not envisioned.

[05:41:36] This slide presents the draft project scheduled for phase two, including estimated timelines and key milestones following the approval of the project plan tonight. Phase two is anticipated to be completed by the fourth quarters of 2026 with a final board action potentially occurring in December 2026. However, I would like to emphasize that any delay in approving the project plan or the addition of any an extra work session may extend the timeline into 2027. Finally, TELEC recommends that the board approve the project plan and direct

[05:42:16] staff to add a policy in the 2019 general plan clarifying that data centers should not encroach into the TPA outside the designated place types. Staff concurs with TLEX recommendations. This concludes our presentations. Staff is happy to answer any questions that you may have.

[05:42:33] Thank you for your time. Thank you. So this is not the first time we've seen this by far. It's a countywide issue, so I'm going to make a motion. I'm going to make the packet motion because it's a countywide issue, and I think we can have the discussion within the motion. What?

[05:42:51] I understand. I'm making the motion in the package. I move the Board Supervisor to approve the draft project plan for CPAM 2025-0001 and ZOM 2025-0001 Data Center Standards and Locations Phase 2 provided as Attachment 1 to the September 16, 2025 Board Supervisor's Business Meeting Action Item.

[05:43:12] I further move the board to staff to add a policy to the Loudoun County 2019 general plan clarifying that data center's uses should not encroach in the areas of the transition policy area outside the transition light industrial and transition industrial mineral extraction place types.

[05:43:32] Is there a second? I'll second. Thank you, Mr. Turner. Okay. So that's the packet motion. I will say, Mr. Sainz and Mr. Turner, I don't know that you saw that Mr. Crony handed out a piece of paper adding a furtherance to that motion.

[05:43:53] I'm not saying that, and I wouldn't support that for a couple of reasons. One, we don't need it. What we're actually doing is it covers all parts that we're talking about. Two, although Dallas Cloud South is listed in the Economic Development Data Center Land Study, it's not a zoning determination, it's not in the CPAM, I mean, not in the Comprehensive Plan, rather, and there's no clear-cut boundary lines except for what is done through the Data Center Land Study, which is not the same thing, and so I do not believe, one, it's

[05:44:25] nor is it appropriate to talk about a piece or parcel that's not clearly defined as a zoning area in our zoning. It's just not necessary. And I don't believe it's like talking about Ashburn Village. Ashburn Village is a whole lot of stuff to a whole lot of people. It's not one defined area always. And so I don't think we should, I don't think we should be, for lack of a better the word, almost personal. And I think that this motion covers what we need to cover without

[05:45:01] having to say anything that is not -- that is outside the scope -- that's already in the scope, rather. I do have a question. What does -- when you say Phase 2 does not have a mapping component, what does that mean? As part of the -- again, Phase 2, both the CPAM and the ZOM, it is text amendments, updating policies and regulations.

[05:45:27] If you don't have a mapping component similar to phase one, if you recall, there were a couple of areas within the county where the place type designations were updated, so that type of mapping component is not part of phase two. - Which is even further why I don't want the second part of this, another part of that motion in this motion, that's also correct and that's also why.

[05:45:49] So I appreciate all the help and work on this. I do believe that the TPA was never meant outside of the light industrial transition and mineral extraction to have data centers or have heavy industrial.

[05:46:10] I understand what is in that area. I understand what Prince William has done. I understand that what Prince William has done is actually been in court and for what some would say is minor reasons has been pulled back. I understand all that.

[05:46:27] But there also, in my opinion, has to be some of the county that we look at and say, we're not going to do this here. And so I think that this covers that as far as I am concerned. Discussion on the motion, Mr. Sainz? Thank you, Madam Chair.

[05:46:45] Can I ask staff a question? Sure. So, yes, from the stats point of view, do you feel, you know, we have two school of thoughts, I guess. You have Chair Randall who feels we don't need the necessary language to do what Supervisor Tricone is doing.

[05:47:03] And then we have the language from Supervisor Tricone. So from the stats point of view, which is the, I guess, lack of a better word, better motion or takes care of the issue at hand with Dulles Cloud South area. So, I agree with everything that Chair Randall said. Since Ellis Cloud South is not currently

mentioned in the comprehensive plan, I don't think it is necessary to call it out by name in any fashion. And I do think that the language and direction provided in the current motion also covers that in its language because that area is not in one of the two place types mentioned in the motion.

[05:47:41] Okay, then I'll go with staff's verification, then I'll go with Chair Randall's thought process here. Thank you. Thank you. Mr. Letourneau? Thank you.

[05:47:58] I will ask, though, Dan, if we were to include the language, is that harmful in any way? Not necessarily harmful. I think it's confusing. You're forcing somebody to go to another document to go figure out what that is, unless we spent more effort to define it to show it somehow and to put more of that into the plan all right so I think what what supervisor crony and I are attempting to do chair Randall is end the discussion of Dulles Cloud South because it is not ended regardless of what people say it is not ended uh it is still out there there are still is this is not there is not one landowner or one applicant there's a map there's a whole a whole group of them who are still working on this

[05:48:38] expecting the board at some point, I think, to capitulate on this topic. And so, unfortunately, if you look at the legislative history of Dulles Cloud South, there was never a point where the board said no. Actually, in fact, attempts to do that were tie votes and did not pass.

[05:48:56] So if the appropriate vehicle is not an amendment here, I do think we would have a desire to get the board on the record to state that it does not support that moving forward with that project, as was outlined in the economic development report. I can accept what you're saying and what Mr. Galindo is saying about this language and I also don't think there's support for doing it right now but I do think it's important that we define that or else people will continue to have confusion in the community about it because it was something that the county put out in an

[05:49:31] official way and the board never said we weren't going to do it. So this is a positive step because by letter of the law if we're stating that there's not going to be data centers in the TPA then there can't be data centers in Dulles Cloud South so that is worth acknowledging and I think we should take that as as what it what we mean by that and that includes explicitly Dulles Cloud South as it was proposed or anything else in the TPA but I may still supervisor crony and I think would still like to find another way to just end that conversation that was sort of unended

[05:50:07] in previous iterations for the board even if it's not this so I will just kind of put that out there and we can talk offline about it or whatever but but I think that's what the thought process was behind this and I will support the motion support the idea behind it and in large part that's because I don't want to see any encroachment into the areas south of Braddock Road in the southern part of the county which is as well as the western part of the county west of Route 15 and in the TPA between north star and 15 further um to have data centers thank you thank you sir um some stuff

[05:50:45] thank you madam chair um that that actually was uh supervisor Letourneau's comments were were enlightening um in a in a good way um and I I can understand where he and supervisor crony are coming from

[05:51:06] I, because I'm probably the only remaining member of the board who actually would support data center development in certain areas in the transmission line corridor near the huge substations in Dulles Cloud South, I won't be voting for the motion.

[05:51:33] but I do believe that the packet motion would prohibit data center development in Dulles Cloud South because it's just not that the Dulles Cloud South area is, I think, transition large lot neighborhood, and that is clearly not mentioned as one of the two areas where data centers could be allowed.

[05:52:01] So thank you. Ms. DeCrony. Thank you, Chair Randall. Yeah, I want to echo what Supervisor Letourneau just said. It was not, the book was not closed. And I have the history, you know, in 2022, Supervisor Buffington tried to get rid of Dull's Cloud South when that land use study was presented by economic development and it did not get supported. So it is time to close the book on it. You know,

[05:52:38] developers are trying to bring it up as a reason to put data centers in the transition policy area and they are not appropriate in the transition policy area except within the two areas that the board identified. This motion draws a hard line on the encroachment of data centers into the transition policy area, and it sends a message to the data center developers that there will be no exceptions at all. And it ends any consideration of Dulles Cloud

[05:53:12] South from that study. It would have enabled, just so everybody knows, 56 million square feet of data center space south of Route 50, just so you know the magnitude of what was being proposed. And we do need to be clear to the business community that we won't support it, that Dulles Cloud South undermines the vision of the county's transition policy area and the 2019 comprehensive plan that was shaped with significant public input. It does not

[05:53:43] line at all, and that study came out two years after the comp plan with no public input at all. So I thank the board for making this statement that we will not support any encroachment and any development at all that is data centers in the transition policy area, including Dallas cloud south. I do want to say two things real quick, because we didn't have time to answer questions or to ask questions. I do think the noise study, the noise analysis that we're

[05:54:22] doing should be data center focused only, not for the entire county. I know that was a question that staff had, and I would be interested in looking at Loudoun Gateway Metro rail station to see where we can accommodate, you know, other uses, you know, we had a vision that wasn't just data centers around the Loudoun Gateway metro rail station. And lastly, I do think regarding the innovation forum, I would like that to be kind of similar to what

[05:54:57] the board did with the energy strategies workshop that was hosted by gg dgs and mw cog in september of 2021 where it was a public forum where people could listen so anyway i'm just throwing out other things you really are just throwing out well i had a whole list nothing to do with emotion at all but okay all right thank you thank you um miss brixman thank you madam chair um i i did have a number of questions as well so i would ask staff if we could schedule a briefing um for example on

[05:55:34] page five you talk about a use table for op ip and i was looking in that use table and i don't understand why we would preclude utility scale solar in OP and IP. That was one of my questions. But I do want to hone in on the Dulles Cloud South issue because I was actually shocked by the vote at TLUC that it wasn't a majority vote to preclude any data center development in the Dulles Cloud South area. Actually, I was kind of shocked when the mapping project came out that that was even

[05:56:07] identified and because it was identified there are a lot of prospectors looking at that area so let me just just clarify that area of dulles cloud south does not contain any place types that are transition light industrial or transition industrial mineral extract it does not okay okay great um however because we are

um well let me ask it this way if an application were to come through for data centers in the dullest cloud south area i presume staff would then identify

[05:56:47] that as an issue and not support the application yes if we were looking at it today we would use the place type guidance which would already be counter to that once this new policy is formally adopted it will just re-emphasize that same guidance so in some ways even having this is redundant based on how we use the place types but to have it clearly stated once there I think it makes sense it seems to be what the board would like to do and there's no harm in doing that.

[05:57:14] I'm sorry there's no harm in doing what? And restating this clearly in one additional place in the TPA guidance. In the zoning yes but I would have supported the motion that had the I further move precluding data center development in Dulles Cloud South.

[05:57:29] I look forward to having a discussion about how we do close the book on that because, as I said, we have a number of prospectors who are very interested in trying to rezone that area because of the map, as Supervisor Letourneau said, came out and said that that might be an area where we could support data centers.

[05:57:50] At this point, I believe the majority of the board is against data centers in Dulles Cloud South area, and I'd like to find a way to have that projected in our zoning ordinance or some kind of amendment or whatever we need to do, whatever the process is, where we basically shut the door on that possibility.

[05:58:12] Otherwise, I'm happy with the work, and I also did want to talk about the mapping component, But I guess I can do that at another time, but I'm happy to support this motion. Thank you. Mr. Turner. Thank you, Madam Chair.

[05:58:28] May I address Mr. Rogers, the county attorney? Sure. Mr. Rogers, so if we pass this motion tonight, and I think this is an extension of what Supervisor Brisbane and Mr. Galindo just said, if we pass this motion tonight, is there a legal basis for the board tomorrow to deny a data center application in dullest cloud south based on this motion knowing that this cpam will not be processed and finalized and voted on for probably another

[05:59:00] year that based on the discussion tonight the board has discussed the planning for the transition policy area which includes that area known as dullest cloud south and the board would have a justifiable basis for turning down that rezoning okay that's that's that was the key thing for me and then one other thing for the staff if you can go to page uh 21 in the item it's attachment to block four um it this is a small thing but we only talk about lead silver or gold as building

[05:59:36] certification and i had wanted to include there's a supplemental standard now in the industry it's called the Green Building Initiative. It's thegbi.org if you want to go look it up. But they issue Green Globe certifications in concert with the LEED certification. It's a much more extensive environmental analysis of the facility that's being built. And I would like to, if we can, include that as a possibility in the language as we draft phase two. That can be one of the rating standards that we can apply.

[06:00:17] We've copied that down. Thank you. Yep, that's all I have, Madam Chair. I have never had the most obvious thing explained to me 15 times in my life as I have tonight. I, you know, if it wasn't mostly coming from women, I would call it mansplaining, but that was ridiculous and a little bit insulting, to be quite honest.

[06:00:39] That's why it's not called mansplaining. It is clear that this area is included. So when we talk about closing the door, we haven't said this to this clarity before. I'm not even sure if we're still discussing it. It is very, very clear. And Mr. Reiser has a different job, a different job, and his job is not zoning and comp plans.

[06:01:02] That's not his job. And so he's supposed to do what he did, but that's a different job than what we're supposed to do up here. That's not zoning. So this does close the door on that, And it has been said 20 different ways.

[06:01:18] And there's no, sometimes less is more. And there's no reason to add more to just add to the confusion. There's just no reason to do that. So I made the motion. Mr. Turner seconded the motion. All the people say, please say aye. Aye.

[06:01:34] Opposed? That motion will pass 801 with Ms. Umstead opposing the motion. I do believe that is everything. Yes? Madam Chair, if I may. Oh, you wanted to add something. Mr. Sainz, you may want to hear this because you may want, Mr. Rogers has a bit of a clarification from the last motion.

[06:01:53] I want you to hear this just in case somebody wants to change something. Mr. Rogers. Yeah, I want to apologize for the confusion on Greenfield Farm rezoning. It was stated that the maintenance agreement would only go for five years. That was based on the proper language that was dealing with the maintenance security escrow of \$100,000.

[06:02:17] That \$100,000 is in place unless a plan is put in place for maintaining the structure, then the county gets that money. The maintenance agreement is to be recorded. There is no reference to it having a five-year term. We'll say that Ms. Britton and Mr. Thompson and Mr. Barnett are here.

[06:02:36] They're all able to answer these questions as well, but it was clear from reading the proper that the five years only applied to the escrow agreement, does not apply to the maintenance agreement, and I don't know if that would change any votes. Mr. Sains, does that change anything for you?

[06:02:55] No, Madam Chair, I guess I could have clarified in my comments, or lack thereof comments at that time. It's okay, I just want to make sure. It's fine with me, I just want to make sure, that's all. I'll just state it for the record. The reason why I'm voting no is that, yes, they're offering a lot of good things, but the overall price tag for the individual units are going to be sky high, let's just say, lack of a better word, for a lot of those units, and I'm just not comfortable voting for these price ranges that we're seeing for these new developments right now in Loudoun County.

[06:03:29] Okay, thank you. Thank you. All right, then anything else? Anything else? We're good? Mr. Sainz, Mr. Turner, anything else? We're good? Okay, we are adjourned. Thank you.

